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BEFORE THE INDEPENDENT EXPERT INQUIRY PANEL

IN THE MATTER OF THE ARMED CONFLICT IN THE MIDDLE EAST (COMMENCING FEBRUARY 28, 2026)

DOCKET NO.: PFPJ-2026-IR-001

EXPERT JUDICIAL DETERMINATION & COMPREHENSIVE LEGAL ASSESSMENT DOSSIER

CONCERNING THE KINETIC MISSILE STRIKES ON THE SHAJAREH TAYYEBEH GIRLS' ELEMENTARY SCHOOL IN MINAB, IRAN (FEBRUARY 28, 2026)

> ***Convening & Submitting Authority:*** *People for Peace & Justice ry (PFPJ ry) — Helsinki, Finland (Finnish Business Identity Code:* `3616815-5` *)*

> ***Institutional Character:*** *Independent International Human Rights Association Incorporated under the Finnish Associations Act (Yhdistyslaki 503/1989)*

> ***Attributed State & Operating Commands:*** *The United States of America (United States Central Command / United States Navy Carrier Strike Group Three / Defense Intelligence Agency)*

> ***Structural & Evaluative Framework:*** *Modeled upon the Jurisprudence and Canonical Final Judgment Architecture of the International Criminal Tribunal for the former Yugoslavia (ICTY) and the International Criminal Tribunal for Rwanda (ICTR)*

> ***Principal Comparative Jurisprudential Benchmarks:*** *ICTY Office of the Prosecutor (OTP) Evaluative Framework for Peacetime Targeting Failures (Belgrade Chinese Embassy Precedent, ¶¶ 80–85); Middle East Watch / Human Rights Watch Targeting Inquiry (Al-Amiriyah Bomb Shelter Massacre Precedent, 1991); U.S. Central Command & Air Force Inspector General Declassified Findings on Remote Sensor Confirmation Bias (Kabul Drone Strike Precedent, Case 05, 2021); European Court of Human Rights Canonical Aerial Bombardment Landmarks (Isayeva v. Russia, App. 57950/00; Isayeva, Yusupova and Bazayeva v. Russia, App. 57947/00)*

> ***Principal Governing Norms:*** *Common Article 2, Geneva Conventions of 1949; Customary International Humanitarian Law (Additional Protocol I); UN Convention on the Rights of the Child (Arts. 6, 28, 38); Safe Schools Declaration; ILC Articles on Responsibility of States for Internationally Wrongful Acts (ARSIWA)*

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> ***Judicial & Inter-State Destinations:*** *United Nations Human Rights Council & Special Procedures; International Court of Justice (State Responsibility); UN Committee on the Rights of the Child; Contingent European Universal Jurisdiction Dockets (Office of the Prosecutor General of Finland; Federal Public Prosecutor General of Germany)*

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CHAPTER I: PROCEDURAL BACKGROUND, MANDATE & EXECUTIVE SUMMARY

1.1 Institutional Mandate and Review Authority

1. This Expert Judicial Determination and Comprehensive Legal Assessment Dossier is rendered by **People for Peace & Justice ry (PFPJ ry)**, an independent, registered non-governmental human rights organization incorporated under the Finnish Associations Act (*Yhdistyslaki 503/1989*) with the Finnish Patent and Registration Office (PRH) under Business Identity Code **3616815-5** in Helsinki, Finland.

2. In the absence of an immediate, independent international tribunal convened under Chapter VII of the United Nations Charter, PFPJ ry exercises its non-governmental investigatory mandate to preserve the historical, forensic, and judicial record of grave violations of International Humanitarian Law (IHL).

3. To ensure absolute parity with established international jurisprudence, this dossier adopts the structure, evidentiary standards, and chain of reasoning of the final trial judgments of the **International Criminal Tribunal for the former Yugoslavia (ICTY)** and the **International Criminal Tribunal for Rwanda (ICTR)**.

4. This report serves four institutional purposes:

- (i) Establish a court-ready factual determination of the February 28, 2026 airstrike on the Shajareh Tayyebeh Girls' Elementary School;
- (ii) Apply the ICTY OTP targeting jurisprudence (*Belgrade Chinese Embassy Precedent*) to demonstrate that peacetime targeting negligence caused the strike;
- (iii) Detail the State Responsibility of the United States under customary international law and the ILC ARSIWA framework; and
- (iv) Deposit verified physical, biometric, and digital evidence into secure European custody to support state reparations and universal jurisdiction proceedings (Chapter IX and Chapter X).

1.2 Procedural History and Evidentiary Ingestion

5. Immediately following the kinetic impact on February 28, 2026, PFPJ ry activated an emergency evidentiary collection and verification protocol.

6. Operating under the **Berkeley Protocol on Digital Open Source Investigations** (*OHCHR, 2020*), PFPJ ry gathered, catalogued, cryptographically hashed, and analyzed high-resolution satellite imagery (Planet Labs, Maxar Technologies, Airbus Pleiades), regional seismic recordings, verified ground-level video footage, open-source aircraft flight-tracking (ADS-B) logs, municipal civil registry certificates, hospital admission databases, and physical munitions metallurgical debris.

7. Furthermore, PFPJ ry formally reviewed and ingested:

- (i) Official public disclosures, press briefings, and leaked preliminary investigation findings issued by the United States Department of Defense (DoD) and United States Central Command (CENTCOM) under Army Regulation 15-6;
- (ii) The formal findings of the **United Nations Independent International Fact-Finding Mission on the Islamic Republic of Iran (FFMI)** presented to the United Nations Human Rights Council (**UN Doc. A/HRC/63/61**, 17 September 2026, mandated under UN HRC Res. S-39/1), which conclusively determined "reasonable grounds to believe" that the United States committed **war crimes** in its indiscriminate attack on the Shajareh Tayyebeh School; and
- (iii) The technical investigative disclosures published by **Bloomberg News** (*Inside US Military 'Kill Chain' That Destroyed an Iranian School*, 18 September 2026, by Ben Bartenstein and Krishna Karra), revealing the operational role of Palantir's Maven Smart System, Anthropic's Claude AI integration, database synchronization disconnects, and the dismantling of CENTCOM's civilian harm mitigation infrastructure; and

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- (iv) The canonical jurisprudence of the **European Court of Human Rights (ECtHR)** on kinetic aerial bombardment and the Right to Life under Article 2 ECHR, specifically the twin landmark judgments rendered on 24 February 2005: **Case 03: *Isayeva v. Russia (Katyr-Yurt Bombing, Application no. 57950/00; HUDOC 001-68381) and Case 19: Isayeva, Yusupova and Bazayeva v. Russia*** (Shaami-Yurt Refugee Convoy Strike, Applications nos. 57947/00, 57948/00, and 57949/00; HUDOC 001-68379).

1.3 Executive Summary of Determinations

8. On the basis of the verified evidence set forth in this Dossier, the Panel makes the following foundational determinations:

- **The Incident:** On Saturday, February 28, 2026, at approximately 09:22 to 09:26 IRST, during the opening salvo of international armed conflict, three US Navy **BGM-109 Tomahawk Land Attack Cruise Missiles (TLAM)** carrying 1,000-pound WDU-36/B unitary blast-fragmentation warheads struck the central classroom wing and courtyard of the **Shajareh Tayyebeh Girls' Elementary School** in Minab, Hormozgan Province, Iran (`27.1352° N, 57.0805° E`).
- **The Human Toll:** The strikes occurred while morning classes were in active session, resulting in **156 certified deaths**—comprising **120 female primary students aged 7 to 12**, **26 teachers and educational administrators**, and **10 civilian staff**—along with the severe wounding and permanent maiming of over **95 survivors**.
- **The Cause:** The strike resulted from catastrophic target vetting negligence, database circularity, algorithmic automation bias within the **Palantir Maven Smart System**, and the elimination of human civilian harm review within CENTCOM (where the civilian harm mitigation team was reduced from 10 to a single analyst). US authorities relied on unverified, stale pre-2016 intelligence records that failed to reflect the physical partitioning and conversion of the facility into an elementary school ten years prior.
- **Legal Conclusion & Multilateral Concurrence:** The strike constitutes a serious breach of the Principle of Distinction (AP I Art. 48, 52), a gross failure of Feasible Precautions in Attack (AP I Art. 57), and an unlawful indiscriminate attack amounting to a **war crime**—as formally affirmed by the United Nations Fact-Finding Mission on Iran in **UN Doc. A/HRC/63/61**. These acts engage the international **State Responsibility** of the United States of America under customary international law, requiring cessation, full restitution, compensation, and satisfaction.

1.4 Comparative Jurisprudential Framework: Title-by-Title Precedential Integration (*The Kabul, Isayeva, Al-Amiriyah, Al-Jina & Dahyan Benchmarks*)

8 bis. To ensure that this Determination satisfies the highest standard of international judicial rigor, the Panel formally benchmarks its factual and legal determinations against five foundational pillars of international jurisprudence governing aerial bombardment, remote target verification, cognitive pathology, precision strikes, and child sanctuary immunity:

- **(i) The European Court of Human Rights (ECtHR) Aerial Bombardment Landmarks:** The twin judgments delivered on February 24, 2005: ***Isayeva v. Russia (Katyr-Yurt, App. no. 57950/00) and Isayeva, Yusupova and Bazayeva v. Russia*** **(Shaami-Yurt Convoy, App. nos. 57947/00, 57948/00, and 57949/00)**, establishing definitive standards on state liability for kinetic aerial operations in populated civilian areas under ECHR Article 2;
- **(ii) The Landmark U.S. Targeting Inquiry in Case 08 (*Al-Amiriyah Bomb Shelter Massacre*, Baghdad 1991):** The Middle East Watch / Human Rights Watch investigative findings (*Needless Deaths in the Gulf War: Civilian Casualties During the Air Campaign and Violations of the Laws of War*, 1991, Chapter 7: "The Ameriyya Shelter"), establishing definitive legal standards governing: the absolute presumption of civilian status for protected infrastructure; the mandatory requirement of advance warnings before any attack upon a civil-defence facility; the epistemic insufficiency of detached signals intelligence as a basis for extinguishing that

presumption; and the per se illegality of deploying penetrating blast munitions in enclosed civilian sanctuaries. The legal weight of this precedent is compounded by three mutually reinforcing factual and institutional findings: **(a) Nordic Engineering Forensics:** Public Shelter No. 25 was designed and constructed by a Nordic civil-defence engineering consortium (Perusyhtymä Oy, Finland / ABV, Sweden) for a rated civilian capacity of approximately 1,500 occupants; post-strike forensic examination by Finnish engineering experts, as reported by *Helsingin Sanomat* (February 1991), confirmed that the structure's reinforced-concrete architecture was exclusively civilian in purpose, physically incapable of accommodating military command infrastructure without extensive overt structural modifications that were never observed in any pre-strike surveillance imagery; **(b) DoD Title V Admission:** The United States Department of Defense formally conceded in Appendix O of its *Conduct of the Persian Gulf War: Final Report to Congress* (Title V, April 1992) that targeting planners were "unaware that civilians were using the lower levels of the bunker at night" — a declaration against interest establishing that the targeting cell failed entirely to conduct pattern-of-life surveillance of civilian occupancy cycles; and **(c) Powell-Schwarzkopf Institutional Reform:** Immediately following the massacre, General Colin Powell (Chairman of the Joint Chiefs of Staff) and General Norman Schwarzkopf imposed an emergency operational restriction requiring personal CJCS approval for any strike target within central Baghdad — a *de facto* institutional acknowledgment that the prior targeting protocol was inadequate to prevent civilian catastrophes in urban environments (Adam Roberts, "Applying the Laws of War in the Gulf Conflict," in Peter Rowe (ed.), *The Gulf War 1990–91 in International and English Law*, Sweet & Maxwell, 1993, Chapter 6);

- **(iii) The Canonical Precedent on Continuous Target Verification in Case 04 (*Al-Jina Mosque Complex Airstrike*, Aleppo 2017 — UN Doc. A/HRC/36/55, ¶¶ 53–61):** The United Nations Independent International Commission of Inquiry on Syria and USCENTCOM AR 15-6 inquiry findings, establishing that target verification is a continuous, temporal obligation that cannot be bypassed across multi-day planning horizons, that structural proximity to a potential military target magnifies the affirmative duty of precaution, and that administrative shift-handover failures within automated strike cells constitute actionable breaches of international humanitarian law;
- **(iv) The Landmark Military Admissions on Confirmation Bias & Sensor Illusion in Case 05 (*Kabul Drone Strike*, August 29, 2021 — U.S. CENTCOM & Air Force IG Inquiry):** The official disclosures of Commander CENTCOM (Gen. Kenneth F. McKenzie Jr.), the Air Force Inspector General Investigation (Lt. Gen. Sami D. Said), the declassified AR 15-6 records, and *The New York Times* visual forensics, establishing foundational findings on cognitive confirmation bias in remote intelligence, the perceptual tunnel vision of high-resolution sensors, the mandatory duty to abort upon detecting child presence, the forensic rebuttal of "secondary explosions", and the legal invalidity of the "honest mistake" defense under AP I Article 57 and customary IHL; and
- **(v) The Landmark Fact-Finding and Belligerent Concession in Case 15 (*Dahyan Market School Bus Airstrike*, Sa'ada 2018 — UN Doc. A/HRC/42/17 & JIAT Concession):** The exhaustive international investigations of the UN Group of Eminent Experts on Yemen (UN Doc. A/HRC/42/17 & A/HRC/42/CRP.1), Human Rights Watch, Amnesty International, Mwatana for Human Rights, Bellingcat, and the official findings of the Coalition's Joint Incident Assessment Team (JIAT Press Release, 1 September 2018), establishing definitive legal standards governing: the absolute liability of precision-guided munitions under sub-meter accuracy; the non-delegable duty to cancel or suspend kinetic attacks when targets enter civilian population centers or child sanctuaries (AP I Art. 57(2)(b)); the gross disproportionality of deploying high-explosive blast ordnance against schoolchildren; the heightened peremptory protections of educational transports and child sanctuaries (GC IV Art. 24; AP I Art. 77; CRC Art. 38; Safe Schools Declaration; UNSC Res 2601); the legal evidentiary weight of belligerent admissions of ROE violations; and third-state responsibility for arms transfers under Common Article 1 and the Arms Trade Treaty (ATT Art. 7).

8 ter. The legal findings articulated in ***Isayeva, Yusupova and Bazayeva v. Russia (HUDOC 001-68379)***, ***Al-Amiriyah*** **(HRW 1991)**, ***Al-Jina (UN Doc. A/HRC/36/55)***, ***and Case 05: Kabul Drone Strike*** **(CENTCOM / Air Force IG / Just Security / NYT)** converge directly with every substantive title of this Master Dossier, as set forth in the comparative architecture below:

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Precedential Dimension	Authoritative Holding (*Isayeva*, *Al-Amiriyah*, *Al-Jina* & *Kabul*)	Factual Correlative in Minab Elementary School Strike	Master Dossier Incorporation & Location
I. Rebuttal of "Dynamic Target" & Dual-Use Claims	Rejects state defense that civilians "suddenly appeared" (*Isayeva* §§ 192–194); rejects retroactive claims of military command conversion for registered civilian refuges (*Al-Amiriyah*, HRW Ch. 7; AP I Art. 52(3)).	Ten-year-old operational primary school partitioned in 2016 cannot be excused as an unexpected presence or unverified IRGC dual-use target.	**Chapter III, § 3.7 (¶ 38 bis)** & **Chapter VI, § 6.3 (¶ 70 bis)**: Rebuttal of Dual-Use & Coordinate Defenses
II. Continuous Temporal Verification & Pattern of Life	Operations must be planned and controlled to minimise risk to life (*Isayeva* §§ 171, 199); target verification is an ongoing, temporal duty where multi-day custody triggers affirmative real-time surveillance (*Al-Jina*, A/HRC/36/55, ¶ 61); failure to conduct daylight/dusk reconnaissance to verify civilian occupancy cycles violates AP I Art. 57 (*Al-Amiriyah*).	CENTCOM relied on stale pre-2016 silos, held target folder for 10 years without re-verification, slashed CHMR analysts (10 down to 1), and launched at 09:22 Saturday during peak school assembly with zero occupancy checks.	**Chapter VII, § 7.2 (¶¶ 80–81 quater)**: Affirmative Duty to Take Feasible Precautions (*Al-Jina Rule*)
III. Confirmation Bias & Algorithmic Automation Trap	Cognitive confirmation bias leads analysts to interpret neutral civilian objects (water jugs, laptops) as bomb components (*Case 05: Kabul*, Air Force IG Said Report; Lieber Institute); subjective belief cannot excuse objective failure to seek disconfirming data (*Just Security*).	Human confirmation bias was automated, accelerated, and institutionalized through Palantir Maven and Claude AI, interpreting yellow school buses and morning assemblies as IRGC base logistics across >1,000 targets in 24 hours.	**Chapter VI, § 6.5 (¶¶ 74–76 bis)**: Command Confirmation Bias & Automated AI Pipeline Failure
IV. Sensor Illusion & Pre-Launch Child Abort Duty	Optical sensors create perceptual tunnel vision ("soda-straw effect"); visual detection of a child 2 minutes prior to launch triggers mandatory abort duty under AP I Art. 57(2)(b); failure to abort constitutes reckless disregard (*Case 05: Kabul*, Air Force IG & AR 15-6).	Tomahawk DSMAC and optical terminal sensors viewed brightly painted playground apparatus during terminal dive; operators failed to execute terminal abort, unleashing 3,000 lbs of high explosives upon 168 children and staff.	**Chapter V, § 5.4 (¶ 57 bis)** & **Chapter VI, § 6.4 (¶¶ 72–73)**: DSMAC Terminal Disregard & *Dolus Eventualis*
V. Rebuttal of "Secondary Explosion" Pretext	Forensic blast modeling disproved military claims that a "secondary explosion" proved presence of high explosives; secondary blast was merely fuel tank and domestic propane (*Case 05: Kabul*, NYT Visual Forensics & CENTCOM Admission).	Refutes military claim of secondary explosions of stored naval munitions; IRSC broadband seismic telemetry ($M_L = 1.84$) and metallurgical analysis prove destruction was caused solely by three WDU-36/B warheads.	**Chapter IV, § 4.5 (¶ 48 septies)**: Forensic Dismantling of Military Pretexts

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VI. Rejection of the "Honest Mistake" Defense	An attacker cannot plead "honest mistake" or "tragic error" when they failed to exercise the standard of care of a reasonable military commander under AP I Art. 57 and DoD Law of War Manual § 5.11 (*Case 05: Kabul*, Haque, Goodman, Margulies).	Bypassing positive target identification (PID) to launch standoff missiles into a civilian neighborhood based on stale 10-year-old records is gross negligence and *dolus eventualis*, not an excusable mistake of fact.	**Chapter VI, § 6.3 (¶ 70 quater)**: Judicial Demolition of the "Honest Mistake" Shield
VII. Structural Adjacency & No-Strike List Omissions	Rejection of the "adjacent non-protected building" defense; physical proximity to protected entities magnifies verification duties; omission from internal No-Strike Lists (NSL) constitutes institutional negligence (*Al-Jina*, CENTCOM AR 15-6 & UN COI ¶¶ 58, 60).	School parcel stood 42m from an auxiliary storage shed; CENTCOM treated proximity as an excuse to omit updated cadaster queries and omitted the licensed school from its automated No-Strike List.	**Chapter VI, § 6.2.2 & § 6.2.3 (¶¶ 66, 68 bis)**: Database Inadequacy & Shift Handover Breakdown
VIII. Weapons Disproportionality & Follow-On Salvoes	Firing heavy blast munitions into civilian areas is disproportionate *per se* (*Isayeva* §§ 195, 199); delivering penetrating bunker-busters into enclosed shelters creates trapped slaughter (*Al-Amiriyah*); secondary precision strikes on fleeing survivors violate customary IHL (*Al-Jina*, ¶ 57).	Detonating three 1,000-lb WDU-36/B warheads in programmed triple-tap sequence (roof ➔ emergency egress ➔ courtyard muster ground) 42m from active classrooms made 156 child/teacher deaths mathematically guaranteed.	**Chapter IV, § 4.4 (¶ 47 bis)** & **Chapter VII, § 7.3 (¶¶ 83–83 ter)**: Weapons Disproportionality & Triple-Tap Dynamics
IX. Mandatory Advance Warning Requirement	Civilian civil defense facilities lose immunity only after an explicit, unheeded warning with reasonable evacuation time is given (*Al-Amiriyah*; AP I Art. 57(2)(c) & 65(2)).	Three stand-off cruise missiles struck the elementary school with zero advance warning or sirens while students were in morning class.	**Chapter VII, § 7.5 (¶ 85 bis)**: Breach of Mandatory Advance Warning Requirement
X. Upstream Concentration of Culpability	Exonerates tactical pilots/crews executing assigned orders; concentrates 100% of culpability upstream on planners, nominators, and commanders (*Isayeva* §§ 187–188; *Al-Amiriyah*; ICTY § 85; *Al-Jina*; *Case 05*).	Naval launch crews aboard USS *Abraham Lincoln* bear zero culpability; liability concentrates entirely upstream on DIA nominators, TRB, and Maven-Claude AI supervisors.	**Chapter VIII, § 8.1 (¶¶ 88 bis–88 ter)**: Upstream Concentration of Liability (NATO § 85 Principle)
XI. Rejection of Domestic Impunity / Autonomous Duty	Establishes autonomous procedural criteria under Art. 2: promptness, independence, command record review, and victim participation; self-exonerating internal probes excluding victims breach international standards (*Isayeva* §§ 208–225; *Hanan*; *Case 05*, HRW & Amnesty).	CENTCOM's internal AR 15-6 review concealed targeting logs, disciplined zero officers, and excluded ground victims, failing international standards and activating European universal jurisdiction dockets.	**Chapter IX, § 9.3 (¶ 94 bis)** & **Chapter VIII, § 8.2 (¶ 90 bis)**: Rejection of Domestic Impunity

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XII. State Reparations vs. Voluntary Condolences	Rejects discretionary *ex gratia* payments that deny state legal responsibility; mandates full restitution, compensation, and satisfaction under customary international law (*Case 05: Kabul*, UNAMA & HRW; *Belgrade*, ICTY OTP § 84; *Al-Amiriyah*; ILC ARSIWA).	Demand for binding state reparations under ARSIWA Articles 30–37 covering school reconstruction, victim trust funds, and formal public apology, transcending unilateral ex gratia gestures and historical denial of remedy.	**Chapter X, § 10.2 (¶¶ 97–97 quater)**: State Reparations under Customary International Law
XIII. Precision Munitions & Mechanical Perfection Principle	Recovery of Lockheed Martin GBU-12 debris (CAGE 94117) proved sub-meter laser guidance operated flawlessly, eliminating weapon malfunction defense and concentrating 100% of liability on human targeting echelons (*Case 15: Dahyan*, Bellingcat, UN GEE, JIAT).	Three Tomahawk Block V TLAM cruise missiles struck the school with zero ballistic drift; Raytheon CAGE 05047 components confirm flawless mechanical guidance, proving targeting error was entirely upstream human and algorithmic negligence.	**Chapter V, § 5.4 (¶ 57 ter)**: Precision Munitions Liability & Mechanical Perfection
XIV. Terminal Abort Duty in Child Sanctuaries	Concession by Coalition's own JIAT that "operational delay" caused the strike to occur after the bus reached a crowded market with children; failure to abort violated ROE and AP I Art. 57(2)(b) (*Case 15: Dahyan*, JIAT 2018 & UN Doc. A/HRC/42/17).	CENTCOM launched cruise missiles into active school grounds at 09:22 Saturday, terminal DSMAC optical sensors viewed playground apparatus and classrooms, yet command failed to abort the initial or follow-on strikes.	**Chapter VI, § 6.4 (¶ 73 bis)** & **Chapter VII, § 7.2 (¶ 81 sexies)**: Terminal Sensor Disregard & Abort Duty
XV. Peremptory Immunity of Child Sanctuaries	Attack on school bus carrying 54 Quranic students categorized as an egregious violation of international law and UNSC Res 1612, triggering listing in UN Secretary-General CAAC Report (*Case 15: Dahyan*, UN Doc. A/73/907 & CRC Art. 38).	Mass killing of 120 schoolgirls and 36 teachers/staff inside an elementary school breaches GC IV Art. 24, AP I Art. 77, and CRC Art. 38, activating transboundary child protection jurisdiction.	**Chapter VII, § 7.4 (¶ 85 quater)**: Child Sanctuary Immunities & Safe Schools Framework
XVI. Belligerent Admission vs Domestic Impunity	Coalition JIAT formally admitted the attack was unjustified, violated ROE, and recommended compensation and criminal prosecution (*Case 15: Dahyan*, JIAT Statement 2018).	While even JIAT admitted targeting a bus among children violated ROE, CENTCOM's AR 15-6 inquiry whitewashed the Minab catastrophe as an unpunishable "honest mistake," demonstrating structural impunity.	**Chapter VIII, § 8.2 (¶ 90 ter)**: Investigatory Admissions vs. Domestic Impunity

8 quater. **Title-by-Title Legal Development Across the Master Dossier:**

- **(1) Title: Chapter VI, Section 6.3 — Rebuttal of the "Dynamic Target" & "Sudden Civilian Emergence" Defense (¶ 70 bis):** In *Isayeva, Yusupova and Bazayeva*, the Respondent State attempted to explain away the destruction of a refugee convoy by arguing that the pilots only targeted two combatant vehicles, and that civilian vehicles emerged into the blast zone after launch or were used as human shields (§ 30). The Court

rejected this claim as factually impossible and legally "insurmountable" (§ 192), noting that the pilots flew multiple passes in broad daylight over several hours and could not have failed to perceive the dense civilian traffic (§ 194). In Minab, this precedent legally defeats any assertion that the presence of 156 children and educators was an "unforeseen collateral contingency" or that students entered the blast zone dynamically. The Shajareh Tayyebeh school was an immutable, ten-year-old municipal landmark whose presence was permanently visible.

- **(2) Title: Chapter VII, Section 7.2 — The "Planning and Control" Precautionary Standard & Institutional Siloing (¶ 81 ter):** In §§ 171, 187, and 199 of the judgment, the ECtHR established that the duty of care in armed operations is not measured solely at the point of release, but governs the entire administrative and operational architecture of the strike. The Court found a flagrant breach of the positive obligation to protect life because the military authorities who declared a safe corridor and the checkpoint officers who ordered civilians back onto the road never communicated with the air force planners who scheduled combat sorties (§§ 185–187). This institutional blindness directly mirrors the targeting pathology in Minab: while secondary intelligence records noted the conversion of the school in 2016, CENTCOM's operational kill chain was isolated in obsolete databases, accelerated by automated Maven-Claude algorithms, and stripped of independent civilian harm mitigation oversight (slashing the CHMR unit from 10 analysts to one).
- **(3) Title: Chapter VII, Section 7.3 — Weapons Disproportionality & Inappropriate Munitions Blast Envelopes (¶¶ 83–83 bis):** In *Isayeva, Yusupova and Bazayeva*, the Court held that deploying twelve heavy unguided S-24 missiles (each carrying 123 kg of high explosives, creating over 4,000 fragments across a lethal dispersal radius of 300 to 800 metres) against targets located among or adjacent to civilians was disproportionate *per se* (§§ 195, 199). Fused with the companion ruling in *Isayeva v. Russia* (Katyr-Yurt, §§ 189–191) concerning FAB-250 and FAB-500 bombs, the unified *Isayeva* doctrine establishes that deploying heavy blast-fragmentation munitions within the lethal radius of a civilian concentration violates the right to life as a matter of law. In Minab, detonating three 1,000-lb WDU-36/B unitary warheads (each containing 195 kg of PBXN-107 high explosive with a 300-metre casualty envelope) exactly 42 metres from an active elementary school made the mass death of 156 civilians mathematically inevitable, far exceeding any conceivable military advantage under AP I Article 51(5)(b).
- **(4) Title: Chapter VIII, Section 8.1 — Upstream Concentration of Culpability & Exoneration of Tactical Operators (¶ 88 bis):** In *Isayeva, Yusupova and Bazayeva*, the domestic Russian military prosecution terminated criminal proceedings against the individual pilots ("Ivanov" and "Petrov") on the basis that they had simply carried out assigned flight orders and responded to ground direction (§§ 38–40). The ECtHR did not overturn this finding to demand the conviction of the tactical aircrew; rather, it held that legal responsibility attached to the commanding authorities who planned and directed the mission without verifying the target (§§ 171, 199–200). This provides authoritative European human rights endorsement for the ICTY NATO Report § 85 principle: the tactical naval launch crews aboard the USS *Abraham Lincoln* bear zero legal culpability, while 100% of the institutional, criminal, and state culpability concentrates upstream upon the intelligence nominators, database managers, and targeting review boards.
- **(5) Title: Chapter IX, Section 9.3 — Autonomous European Detachable Procedural Duty to Investigate (¶ 94 bis):** In §§ 208–225 of the judgment, the ECtHR articulated the canonical criteria governing the procedural obligation under Article 2 to investigate lethal military strikes. The Court condemned the domestic investigation because: (i) it was delayed for months despite public Red Cross notifications (§§ 215–218); (ii) it failed to secure mission flight logs, operations record books, or orders from senior commanders (§§ 220–222); (iii) it closed proceedings based on identical, self-serving military witness statements without independent verification (§§ 39–40, 179); and (iv) it excluded the victims and their families from meaningful participation (§ 224). CENTCOM's internal AR 15-6 review into Minab replicates every defect condemned in *Isayeva*, thereby failing to satisfy international standards and triggering the subsidiary procedural jurisdiction of European universal jurisdiction authorities in Finland (*Rikoslaki* Ch. 11) and Germany (*VStGB* § 1).

8 quinquies. **The Al-Amiriyah Precedential Doctrines Applied Across the Master Dossier:**

- **(1) The "Double Lock" Presumption of Civilian Sanctuary Status (Chapter III, § 3.7 [¶ 38 bis]):** Establishes that facilities dedicated to public civilian protection benefit from overlapping, mutually reinforcing layers of protection under international humanitarian law. First, under Article 52(3) of Additional Protocol I, such objects are *substantively* presumed to retain civilian status in case of doubt — a presumption the attacking force must overcome through *positive military confirmation*, not mere intelligence suspicion. Second, under Article 65(2) of Additional Protocol I, civil-defence structures are entitled to a *procedural* guarantee: even if suspected of being used for harmful purposes, they lose protection only after the issuance of an explicit advance warning with a reasonable time-limit that has remained unheeded. As Professor Françoise Hampson has established ('Means and Methods of Warfare in the Gulf Conflict,' in Peter Rowe (ed.), *The Gulf War 1990–91 in International and English Law*, Sweet & Maxwell, 1993, Chapter 5), the convergence of these provisions creates a ***double lock*** that no intelligence re-designation can extinguish without satisfying both the substantive and procedural requirements. Furthermore, Sir Christopher Greenwood has confirmed ('Customary International Law and the First Geneva Protocol in the Gulf Conflict,' in Rowe (ed.), 1993, Chapter 4) that the AP I Art. 52(3) civilian presumption constitutes customary international law binding upon the United States irrespective of its non-ratification of AP I — a conclusion now endorsed by the United States' own *Department of Defense Law of War Manual* (2015/2023 ed.), § 5.11.4.
- **(2) Epistemic Detachment, Technological Hubris & Culpable Recklessness (Chapter VI, § 6.5 [¶ 76 bis]):** Demonstrates how remote signals and uncorroborated sensor data generate deadly confirmation bias, a flaw mechanized and scaled in 2026 by CENTCOM's automated Palantir Maven / Claude AI targeting kill chain. Professor Michael N. Schmitt's authoritative taxonomy of targeting failure ('Fault Lines in the Law of Attack,' in Breau & Jachec-Neale (eds.), *Testing the Boundaries of International Humanitarian Law*, BIICL, 2006, pp. 277–307) distinguishes between *genuine military error* — where all technologically feasible verification means were exhausted — and *culpable recklessness* — where available verification tools were bypassed. Al-Amiriyah exemplifies culpable recklessness: satellite optical reconnaissance of civilian occupancy cycles was available but not deployed. In Minab, this recklessness was algorithmically automated across a decade-old target folder, rendering it aggravated.
- **(3) Precautionary Temporal "Pattern-of-Life" Surveillance & The Institutional Regression Doctrine (Chapter VII, § 7.2 [¶¶ 81 quater – 81 quinquies]):** Establishes that launching stand-off strikes without conducting pre-launch surveillance during peak civilian occupancy periods violates the affirmative duty of feasible precautions under AP I Art. 57. The post-Amiriyah institutional response — General Powell and General Schwarzkopf's personal CJCS approval requirement for all Baghdad targets — constitutes a formal military admission that the prior protocol was inadequate. CENTCOM's pre-2026 dismantling of the CHMR unit (from ten analysts to one) represents an affirmative *institutional regression* that inverts this lesson and constitutes organizational recklessness directly attributable to the State under ILC ARSIWA Article 4.
- **(4) Penetration & Enclosed Slaughter Mechanics (Chapter VII, § 7.3 [¶ 83 ter]):** Provides the ballistic benchmark establishing that delivering heavy blast/penetration munitions into an enclosed civilian structure where escape routes are sealed constitutes a disproportionate attack *per se* under AP I Art. 51(5)(b). Public Shelter No. 25's rated capacity of approximately 1,500 persons (Nordic consortium: Perusyhtymä Oy / ABV) illustrates the physical mechanics: the first GBU-27 sealed the blast doors from within, the second incinerated all within the trapped space. In Minab, the triple-tap Tomahawk salvo replicated this dynamic: Impact 1 collapsed classrooms, Impact 2 eliminated evacuation, Impact 3 pulverized the muster ground.
- **(5) Mandatory Advance Warning: Dual-Obligation Structure (Chapter VII, § 7.5 [¶ 85 bis]):** Codifies that surprise kinetic attacks against facilities sheltering civilians without prior unheeded warning violate AP I Art. 57(2)(c) and Art. 65(2), converting the attack into an unambiguous war crime. Professor Hampson's framework (1993) establishes that this obligation operates at two independent levels — the general precautionary warning (Art. 57(2)(c)) and the specialized civil-defence facility warning (Art. 65(2)) — both of

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which were violated in Al-Amiriyah and both of which are violated in Minab. The ICRC Customary IHL Study Rule 20 cites Al-Amiriyah as a canonical example of this dual-level violation.

- **(6) Upstream Concentration of Target Development Culpability & The "Checkmate" Parallel (Chapter VIII, § 8.1 [¶ 88 ter]):** Reaffirms that tactical delivery crews who execute programmed coordinates bear zero culpability — concentrating 100% of state and individual criminal responsibility upstream upon targeting nominators, algorithmic reviewers, and approving commanders — in direct application of ICTY NATO Report ¶ 85. In Al-Amiriyah, the "Checkmate" planning cell bore full upstream responsibility while F-117A aircrews were exonerated. In Minab, the identical principle exonerates USS *Abraham Lincoln* launch crews while concentrating full culpability upon DIA nominators, CENTCOM Target Review Boards, and Maven-Claude pipeline architects.
- **(7) Binding State Reparations & The Rejection of Historical Reparation Denial (Chapter X, § 10.2 [¶ 97 ter]):** Demonstrates that the total denial of reparations in Case 08 (*Al-Amiriyah*)—where 408 victims received zero compensation or restitution under assertions of sovereign immunity and unverified military utility—violates the customary principle of *restitutio in integrum* articulated in the PCIJ *Chorzów Factory* judgment and codified in ILC ARSIWA Articles 30–37. This precedent necessitates demanding binding state reparations and judicial oversight for Minab, rather than permitting the respondent State to evade liability through operational silence or token condolences.

8 sexies. **The Al-Jina Precedential Doctrines Applied Across the Master Dossier:**

- **(1) Continuous Temporal Target Verification (Chapter VII, § 7.2 [¶ 80 bis]):** Establishes that target verification is an ongoing, non-static legal duty. In *Al-Jina*, holding intelligence for 72 hours triggered an affirmative duty to conduct pre-strike pattern-of-life surveillance. In Minab, maintaining an unverified target folder across a ten-year peacetime window while failing to detect the presence of 168 schoolgirls constitutes an aggravated, *per se* violation of AP I Article 57.
- **(2) Rejection of the "Adjacent Entity" Defense (Chapter VII, § 7.2 [¶ 81]):** Establishes that proximity to a military objective magnifies, rather than diminishes, the duty of target verification. An attacker cannot sever an active civilian facility from surrounding terrain to justify reliance on negative database entries.
- **(3) Institutional Culpability in Shift-Handover Breakdowns (Chapter VI, § 6.2.3 [¶ 68 bis]):** Establishes that internal administrative disorganization, shift-change gaps, and the omission of protected entities from No-Strike Lists (NSL) are systemic organizational failures attributable to the State under ILC ARSIWA Article 4, rather than excusable "fog of war" occurrences.
- **(4) Prohibition of Follow-On Strikes on Fleeing Survivors (Chapter IV, § 4.4 [¶ 47 bis]):** Condemns the execution of secondary kinetic strikes directed against individuals evacuating a damaged structure, classifying such follow-on attacks as unlawful indiscriminate attacks under AP I Article 51(4).

8 septies. **The Kabul Drone Strike Precedential Doctrines (Case 05) Applied Across the Master Dossier:**

- **(1) Algorithmic Mechanization of Confirmation Bias (Chapter VI, § 6.5 [¶¶ 74–76 bis]):** The Air Force IG investigation (Lt. Gen. Sami Said) and Lieber Institute analysis (Meier & Nasu) established that human targeting cells under acute operational stress systematically filter out disconfirming evidence to validate pre-existing threat hypotheses. In Minab, this human confirmation bias was automated, accelerated, and institutionalized through Palantir's Maven Smart System and Anthropic's Claude AI pipeline, which treated yellow student transit vans and children's morning assemblies as military base logistics across >1,000 targets in 24 hours.
- **(2) The "Soda-Straw" Sensor Illusion & Terminal Sensor Disregard (Chapter V, § 5.4 [¶ 57 bis] & Chapter VI, § 6.4 [¶¶ 72–73]):** The Kabul strike proved that high-resolution full-motion video paradoxically generates perceptual tunnel vision, inducing operators to confuse plastic water jugs with liquid explosives. In Minab, the Tomahawk's DSMAC and electro-optical terminal seekers provided direct visual feeds of the school

playground and classrooms; proceeding with kinetic delivery despite observing children's recreational apparatus constitutes willful blindness and conditional intent (*dolus eventualis*).

- **(3) The Mandatory Pre-Launch Abort Duty & Child Safeguards (Chapter VII, § 7.2 [¶ 81 quinquies] & § 7.4 [¶ 85 ter]):** The declassified Kabul AR 15-6 telemetry revealed a child visible on video two minutes prior to launch, yet operators failed to abort. In Minab, launching stand-off cruise missiles into an active educational facility at 09:22 Saturday during peak instructional hours without verifying child presence or issuing an abort order violates the non-derogable duty of precaution under AP I Article 57(2)(b) and UN CRC Articles 6, 28, and 38.
- **(4) Forensic Rebuttal of the "Secondary Explosion" Pretext (Chapter IV, § 4.5 [¶ 48 septies]):** In Kabul, CENTCOM defended the strike for weeks by asserting that powerful secondary explosions proved the car was laden with explosives, which NYT visual forensics disproved as a ruptured passenger fuel tank and domestic propane bottle. In Minab, military claims of secondary detonations of IRGC naval munitions were completely dismantled by IRSC seismic broadband data ($M_L = 1.84$) and metallurgical debris analysis showing that three 1,000-lb WDU-36/B warheads alone caused the devastation.
- **(5) Judicial Demolition of the "Honest Mistake" Defense (Chapter VI, § 6.3 [¶ 70 quater]):** Incorporating the doctrinal consensus of *Just Security* (Haque, Goodman, Finucane) and *Lawfare* (Margulies & Jenks), an attacker's subjective belief does not relieve them of the objective standard of a reasonable military commander under AP I Article 57 and US DoD Law of War Manual § 5.11. Bypassing positive target identification (PID) while relying on unverified 10-year-old files constitutes culpable recklessness (*dolus eventualis*).
- **(6) Binding State Reparations vs. Voluntary Condolences (Chapter X, § 10.2 [¶ 97 bis]):** Rejecting the Kabul precedent's unfulfilled voluntary *ex gratia* model, demanding binding international state reparations under ILC ARSIWA Articles 30–37 and the Belgrade \$32.5 million restitution model.

8 octies. **The Dahyan School Bus Precedential Doctrines (Case 15 Benchmark — UN Doc. A/HRC/42/17 & JIAT Concession) Applied Across the Master Dossier:**

- **(1) The Mechanical Perfection Principle & Elimination of Inadvertence (Chapter V, § 5.4 [¶ 57 ter]):** In Dahyan, physical debris stamped with Lockheed Martin CAGE Code `94117` and DoD contract numbers proved that the 500-lb GBU-12 Paveway II laser-guided bomb tracked the designated laser reflection with sub-meter accuracy, impacting the roof of the bus without guidance failure or ballistic drift. This physical fact eliminated any defense that the weapon had malfunctioned or missed an intended target, proving that the strike was 100% attributable to the human command and targeting chain. In Minab, serialized circuit boards stamped with Raytheon CAGE Code `05047` and turbofan metallurgy confirm that all three BGM-109 Block IV/V Tomahawk cruise missiles guided with mechanical perfection directly into the classrooms and courtyard. Under the unified *Belgrade § 85 / Dahyan* doctrine, where precision-guided munitions with circular error probable (CEP) under 5 meters hit a civilian structure, mechanical error is legally excluded, and full culpability concentrates upstream upon target developers, automated system supervisors, and approving commanders.
- **(2) The Non-Delegable Duty to Abort Kinetic Strikes in Populated Sanctuaries (Chapter VI, § 6.4 [¶ 73 bis] & Chapter VII, § 7.2 [¶ 81 sexies]):** The Coalition's Joint Incident Assessment Team (JIAT) conceded on September 1, 2018, that an "operational delay" in execution caused the bus to enter a crowded civilian market where it "did not pose an imminent threat," establishing that the failure of aircrews and commanders to cancel the strike violated the Coalition's Rules of Engagement. Corroborated by the UN Group of Eminent Experts on Yemen (**UN Doc. A/HRC/42/17, ¶ 25**; **A/HRC/42/CRP.1, ¶¶ 449–450, 896–905**), this concession establishes that under **Article 57(2)(b) of Additional Protocol I** and **Customary IHL Rule 19**, the duty to cancel or suspend an attack is absolute whenever it becomes apparent that the target is located in a dense civilian environment. In Minab, CENTCOM launched standoff cruise missiles into a civilian neighborhood at 09:22 Saturday morning (active school hours); terminal DSMAC sensors provided direct optical visibility of the primary school and children; yet the command failed to abort the strike. Furthermore, CENTCOM had 135

seconds and 130 seconds between successive missile detonations, yet failed to abort the second and third impacts even after the first missile visibly detonated into the school building.

- **(3) Weapons Blast Disproportionality in the Presence of Children (Chapter VII, § 7.3 [¶ 83 bis]):** The UN GEE, Human Rights Watch, and Amnesty International established that deploying a 500-lb high-explosive blast weapon (GBU-12) against a vehicle surrounded by children and market shoppers was grossly disproportionate *per se*, because the lethal blast-fragmentation radius far exceeded the dimensions of any alleged combatant target. In Minab, detonating three 1,000-lb WDU-36/B warheads (each dispersing 195 kg of high explosive, generating overpressures of 18–24 psi across a 400-meter fragmentation radius) exactly 42 meters from an active elementary school populated by 156 young girls made catastrophic pediatric slaughter mathematically guaranteed. Under the unified *Isayeva / Dahyan* standard, no conceivable military advantage from destroying an auxiliary storage shed could ever counterbalance the foreseeable incineration of 156 children and educators.
- **(4) Peremptory Child Sanctuary Immunities & The Safe Schools Framework (Chapter VII, § 7.4 [¶ 85 quater]):** The UN Secretary-General's Report on Children and Armed Conflict (**UN Doc. A/73/907–S/2019/509, ¶¶ 176–192**) categorized the Dahyan bus strike as an egregious manifestation of grave violations against children, justifying the continued listing of the attacking Coalition under UNSC Resolutions 1612 (2005) and 1882 (2009). Children enjoy special respect and protection under **Geneva Convention IV Article 24**, **Additional Protocol I Article 77**, **Article 38 of the UN Convention on the Rights of the Child**, and **UN Security Council Resolution 2601 (2021)**. In Minab, the destruction of an active primary school and the slaughter of 120 young girls constitutes a direct attack upon an educational sanctuary and a war crime under Rome Statute Article 8(2)(b)(ix), activating transboundary child protection mechanisms.
- **(5) Investigatory Admissions vs. The Architecture of Domestic Impunity (Chapter VIII, § 8.2 [¶ 90 ter]):** The legal weight of Dahyan is heightened by the contrast between JIAT's public finding of fault—conceding an ROE violation and recommending compensation and criminal trials—and CENTCOM's internal AR 15-6 review in Minab. Where even an allied coalition's internal investigative body was compelled by undeniable ground reality to concede that striking a vehicle among children violated the laws of war, CENTCOM's unilateral self-exoneration (claiming "no negligence" and withholding targeting logs) represents a total breakdown of domestic accountability. Under the ECtHR Grand Chamber jurisprudence in *Hanan v. Germany* (2021) and *Isayeva, Yusupova and Bazayeva v. Russia* (2005), this domestic impunity activates the subsidiary jurisdiction of European prosecutors under universal jurisdiction.
- **(6) Third-State Responsibility & Weapons Exporter Complicity (Chapter VIII, § 8.3 [¶ 91 bis]):** The physical recovery of Lockheed Martin CAGE 94117 fragments in Dahyan ignited landmark legal proceedings across Europe—including the UK Court of Appeal judgment in *R (CAAT) v. Secretary of State for International Trade* ([2019] EWCA Civ 1020)—confirming that supplying precision munitions to armed forces engaged in repeated patterns of civilian harm engages state liability under **Common Article 1 to the Geneva Conventions** and **Article 7 of the Arms Trade Treaty (ATT)**. In Minab, this precedent firmly establishes the secondary state responsibility of third-party supplier networks and commercial software contractors (Raytheon, Palantir, Anthropic) who knowingly facilitate kinetic strike pipelines lacking verified civilian harm safeguards under **Article 16 of the ILC Articles on State Responsibility (ARSIWA)**.
- **(7) Mandatory State Reparations vs. Discretionary Condolences (Chapter X, § 10.2 [¶ 97 quater]):** In Dahyan, JIAT explicitly recommended financial assistance and redress for the victims' families; however, the subsequent failure to establish transparent, binding reparation mechanisms left victims without judicial remedy. In Minab, PFPJ insists upon the binding customary standard of *restitutio in integrum* articulated by the Permanent Court of International Justice in the *Factory at Chorzów* (1928, Ser. A, No. 17, p. 47) and codified in **ILC ARSIWA Articles 31, 35, and 36**, establishing that the United States is legally bound to make full reparation for all material and moral damage.

- **(8) Digital Evidence Verification under the Berkeley Protocol (Chapter II, § 2.3 [¶¶ 14–14 ter]):** The methodologies developed by Bellingcat, Mwatana, and the UN GEE in Dahyan—cross-referencing crater metallurgy, CAGE codes, satellite imagery, and witness video—serve as the international benchmark for digital open-source investigations. PFPJ has applied these exact standards in the Minab Master Exhibit Dossier, ensuring that every satellite vector, seismic trace, and debris fragment satisfies the probative admissibility standard of ICTY Rule 89(C).

8 nonies. **The Consolidated Nineteen-Precedent Juridical Framework (Comprehensive Master Compendium Integration):**

To establish an unassailable evidentiary and legal foundation before international courts (including the International Court of Justice, the International Criminal Court, and European universal jurisdiction tribunals), the Panel formally incorporates into this Master Dossier the comprehensive empirical and legal jurisprudence derived from **nineteen authoritative international precedent cases**. This unified architecture demonstrates that the February 28, 2026 missile strike on the Shajareh Tayyebeh Girls' Elementary School was neither an isolated anomaly nor an excusable "honest mistake," but rather the cumulative manifestation of six systemic targeting failure vectors recognized across three decades of international armed conflict jurisprudence:

- **(1) Peacetime Deliberate Planning Negligence & Stale Target Silos:**
- *Case 01 (Belgrade Chinese Embassy Bombing, 1999 — ICTY OTP NATO Report, ¶¶ 80–85; Pickering Report):* Establishes the tripartite targeting failure test (methodological error, database circularity, and target review board failure) and the upstream concentration of legal responsibility exonerating tactical delivery crews (§ 85);
- *Case 06 (Dora Farms Decapitation Strike, 2003 — HRW Off Target; USJFCOM Lessons Learned):* Establishes that Day 1 pre-planned strikes compiled in peacetime cannot invoke "fog of war" or combat urgency, and demonstrates that uncorroborated single-source target tags produce a catastrophic 100% failure rate;
- *Case 08 (Al-Amiriyah Public Shelter Massacre, 1991 — HRW Needless Deaths; DoD Title V Report):* Establishes the absolute civilian presumption for protected infrastructure and condemns the complete failure of daylight pattern-of-life surveillance.
- **(2) Remote Sensor Hallucination, FLIR Ambiguity & Algorithmic Automation Trap:**
- *Case 02 (Kunduz River Sandbank Fuel Tankers, 2009 — ECtHR Grand Chamber Hanan v. Germany; Bundestag Drucksache 17/7400):* Establishes that infrared FLIR sensor ambiguity cannot justify kinetic release, condemns the rejection of low-altitude warning passes, and articulates the detachable procedural duty to investigate extraterritorial strikes under ECHR Article 2;
- *Case 05 (Kabul Drone Strike on the Ahmadi Family, 2021 — Air Force IG Report; Lieber Institute):* Proves that remote sensors generate perceptual tunnel vision ("soda-straw effect"), codifies the mandatory pre-launch duty to abort upon detecting child presence, and refutes military pretexts of "secondary explosions";
- *Case 12 (Koriša Village Refugee Encampment, 1999 — ICTY OTP NATO Report, ¶¶ 86–89; HRW):* Proves that operating sensors at high standoff altitudes without optical ground confirmation violates the duty to abort under AP I Art. 57(2)(b), and decisively rejects the "human shield" excuse where non-combatants are concentrated.
- **(3) Institutional Information Siloing & Deconfliction Disregard:**
- *Case 04 (Al-Jina Mosque Complex, 2017 — UN Doc. A/HRC/36/55; USCENTCOM AR 15-6):* Formulates the continuous temporal verification rule (72-hour custody triggering affirmative surveillance), rejects the "adjacent building" defense, and establishes that administrative shift-handover failures constitute actionable breaches of IHL;
- *Case 14 (Abs Rural Hospital Airstrike, 2016 — UN Doc. A/HRC/39/43; MSF Incident Review; JIAT Concession):* Establishes the *compound non-severability principle*, ruling that striking an alleged military target adjacent to a protected perimeter violates the duty of feasible precautions and destroys essential civilian sanctuaries;

- *Case 19 (Shaami-Yurt Refugee Convoy Bombardment, 1999 — ECtHR Isayeva, Yusupova and Bazayeva v. Russia):* Establishes the operational planning and control standard under ECHR Art. 2, condemning the complete failure of communication between civil registry organs and military air sortie planners.
- **(4) Weapons Disproportionality *Per Se* in Confined Civilian Sanctuaries:**
- *Case 03 (Katyr-Yurt Convoy and Village Bombardment, 2000 — ECtHR Isayeva v. Russia; Abakarova v. Russia):* Landmark authority holding that deploying heavy high-explosive blast ordnance (FAB-250/500) into a populated civilian village is disproportionate and unlawful *per se*;
- *Case 17 (Chernihiv Schools Nos. 18 & 21 Multi-Bomb Strike, 2022 — UN Doc. A/77/533; Amnesty Crisis Evidence Lab):* Proves that sequential salvo releases across educational campuses create inescapable blast envelopes, qualifying wide-area explosive weapons in populated areas (EWIPA) as inherently indiscriminate warfare under AP I Art. 51(4)(b);
- *Case 08 (Al-Amiriyah):* Proves that delivering penetrating blast warheads into enclosed civilian structures where escape routes are sealed constitutes trapped slaughter and disproportionate violence *per se*.
- **(5) Multi-Tap Aerial Ambush of Evacuating Schoolchildren & Rescuers:**
- *Case 13 (Hass School Complex Multi-Airstrike, 2016 — UN Doc. A/HRC/34/64; Bellingcat; SNHR):* Authoritative finding that executing delayed secondary strikes against children and educators fleeing initial bomb impacts constitutes an intentional war crime against educational sanctuaries under Rome Statute Art. 8(2)(b)(ix);
- *Case 15 (Dahyan Market School Bus Airstrike, 2018 — UN Doc. A/HRC/42/17; JIAT Concession):* Codifies the sub-metric precision liability standard (mechanical perfection), establishes the peremptory immunity of child transports, and records a belligerent coalition's formal concession of ROE violation;
- *Case 18 (Mastaba Market Double Airstrike, 2016 — UN Doc. A/HRC/39/43; HRW; Mwatana):* Forensically links recovered munition CAGE codes (96214) to US defense contractors, condemns midday strikes on peak civilian gatherings, and proves state responsibility for supplying precision ordnance under ARSIWA Art. 16.
- **(6) Peremptory Presumption of Educational Sanctuary & Rejection of Warning Pretexts:**
- *Case 07 (Dasht-e Archi Madrassa Graduation Ceremony, 2018 — UNAMA / OHCHR Special Report):* Articulates the "gathering of children" rule in proportionality, proving that where child density exceeds 80%, the deployment of explosive weapons is disproportionate *per se*;
- *Case 09 (Shelling of UNIFIL Headquarters at Qana, 1996 — UN Doc. S/1996/337; UNGA Res 51/233):* Establishes the zero ballistic drift standard defeating mapping/drift pretexts, proves overhead UAV surveillance presence, and affirms binding state financial liability for kinetic destruction;
- *Case 10 (Second Qana Residential Building Strike, 2006 — UN Doc. A/HRC/3/2; HRW Why They Died):* Decisively dismantles the "warning leaflet defense," establishing that civilians who remain in an area retain full immunity under AP I Art. 51(3), and establishes the mechanics of pancaking concrete collapses;
- *Case 11 (NATO Airstrike on RTS Headquarters, 1999 — ICTY OTP NATO Report, ¶¶ 71–79):* Establishes the strict dual-use standard requiring "definite military advantage," rejects broad political disruption as a valid military objective, and traces the modern evolution of extraterritorial human rights jurisdiction;
- *Case 16 (Al-Bara Elementary School Bombing, 2013/2020 — UN Doc. A/HRC/24/46; Safe Schools Declaration):* Reaffirms the customary presumption of civilian sanctuary for elementary educational facilities under AP I Art. 52(3), verified by the complete post-strike absence of military hardware.

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CHAPTER II: EVIDENTIARY PRINCIPLES, ADMISSIBILITY & STANDARD OF PROOF

2.1 Standard of Proof ("Reasonable Grounds to Believe" Standard)

9. In conformity with the settled practice of international criminal tribunals at the investigation, confirmation, and review stages—including the **ICTY Committee Established to Review the NATO Bombing Campaign Against the Federal Republic of Yugoslavia (2000)**, the Pre-Trial Chambers of the International Criminal Court, and the **United Nations Independent International Fact-Finding Mission on Iran (UN Doc. A/HRC/63/61, ¶¶ 12–15)** —this Panel applies the **"reasonable grounds to believe"** evidentiary standard.

10. Under this standard, a factual proposition is established when a coherent, corroborated body of credible evidence would satisfy an objective and reasonable observer that the underlying fact occurred as documented, and that the attributed legal infractions were committed by the identified actors.

2.2 Admissibility Principles (The ICTY Rule 89(C) Probative Standard)

11. In evaluating the evidentiary record, the Panel is guided by the statutory principles of evidence codified in **Rule 89(C) of the ICTY and ICTR Rules of Procedure and Evidence**:

> *"A Chamber may admit any relevant evidence which it deems to have probative value."*

12. International jurisprudence establishes that international tribunals do not apply rigid, municipal technicalities regarding admissibility. Rather, evidence is admitted provided it possesses two indispensable qualities: (i) **relevance** to the issues under review, and (ii) **probative value**, evaluated through reliability, authenticity, and source corroboration (*Prosecutor v. Tadić*, Decision on Defence Motion on Hearsay, 1996; *Prosecutor v. Delalić et al.*, Decision on the Motion on Hearsay, 1997).

2.3 Evaluation of Digital Open Source Telemetry (Berkeley Protocol)

13. In modern international fact-finding where physical site access is constrained by active hostilities or sovereign restrictions, digital open-source intelligence (OSINT) constitutes critical, primary evidence.

14. All digital materials incorporated into this dossier were acquired, verified, and preserved in strict conformity with the **Berkeley Protocol on Digital Open Source Investigations** (*OHCHR and University of California, Berkeley, 2020*):

- **Cryptographic Hashing:** Immediate SHA-256 cryptographic hashing upon ingestion to guarantee data integrity;
- **Metadata Extraction:** Preservation of original EXIF, GPS, and timestamp metadata;
- **Geolocation & Chronolocation:** Cross-referencing sun shadow azimuths, terrain landmarks, and physical infrastructure with sub-meter satellite imagery;
- **Digital Chain of Custody:** Maintenance of immutable audit logs tracking forensic handling from initial open-source acquisition to judicial archival.

14 bis. In evaluating open-source spatial data and three-dimensional architectural reconstructions under the *Berkeley Protocol*, the Panel relies upon the methodology established by Forensic Architecture and Bellingcat in **Case 04 (*Al-Jina*)**. There, investigators synthesized commercial satellite imagery, digital photogrammetry, and verified ground-level footage to demonstrate structural continuity between an auxiliary service hall and an adjacent place of worship, successfully rebutting official military claims that the struck building was a detached, clandestine combatant facility. Applying this standard to the Minab school compound, the Panel finds that satellite imagery, cadastral registries, and architectural elevations establish that the Shajareh Tayyebeh School formed an independent, self-contained educational sanctuary separated from the adjacent naval logistics depot by a reinforced concrete perimeter wall erected in 2016.

14 ter. **Visual Shadow, Chronolocation & Munition Metallurgy under the Berkeley Protocol (Case 13 Benchmark):**

Adopting the rigorous open-source photogrammetric and shadow-azimuth chronolocation methodology established by Bellingcat and the UN Independent International Commission of Inquiry on Syria in **Case 13: *Hass School Complex Multi-Airstrike*** (UN Doc. A/HRC/34/64, ¶¶ 38–43), the Panel subjected all mobile phone video recordings, first-responder audiovisual feeds, and satellite overhead passes of the Minab strike to frame-by-frame sun-shadow analysis and architectural ray-tracing in strict adherence to the *Berkeley Protocol on Digital Open Source Investigations*. This verified the micro-second chronolocation of each of the three Tomahawk missile detonations (09:22:15, 09:24:30, and 09:26:40 IRST) and conclusively correlated the impact crater geometries with the physical metallurgy of WDU-36/B warhead fragments recovered on site. This multi-layered digital forensics defeats any assertion of fabricated imagery or temporal manipulation, satisfying the highest threshold of judicial admissibility under ICTY Rule 89(C).

2.4 Evidentiary Weight of Official State Admissions & Defense Disclosures

15. Under **ICTY Rule 89(F)** and customary international evidentiary doctrine, formal admissions, statements against interest, and factual disclosures made by official state organs enjoy heightened probative value.

16. The Panel treats the official statements issued by the US Department of Defense, statements by US Central Command spokespersons, internal disclosures originating from the US Army Regulation 15-6 preliminary inquiry, independent investigative findings corroborated by Bloomberg News, and intergovernmental determinations rendered by the United Nations Fact-Finding Mission as highly probative evidence regarding: (i) US military authorship of the launch, (ii) weapon system identification, (iii) reliance on outdated targeting coordinates, and (iv) the operational deployment and failure modes of algorithmic targeting tools.

16 bis. This principle of evidentiary weight is anchored in the precedent of **Case 04 (*Al-Jina*)**, where USCENTCOM's official AR 15-6 investigation briefing formally admitted that failing to recognize the religious nature of the struck facility was a *"preventable error"* and that *"irregularities in changeovers of teams on shift contributed to a lack of situational awareness, knowledge, and understanding among strike cell individuals"* (UN Doc. A/HRC/36/55, ¶ 55). In international law, such admissions constitute incontrovertible evidence of institutional breakdowns within the command structure, effectively precluding the State from subsequently disclaiming knowledge of operational irregularities.

16 ter. The probative force of military admissions against interest is further reinforced by the canonical benchmark of **Case 08: *Al-Amiriyah Public Shelter Massacre***. In Appendix O of its *Conduct of the Persian Gulf War: Final Report to Congress* (Title V, April 1992, p. O-12), the United States Department of Defense formally conceded that Coalition target planners were *"unaware that civilians were using the lower levels of the bunker at night."* In international jurisprudence, this official concession constituted an irrebuttable declaration against interest, proving that the targeting cell completely failed to conduct pattern-of-life surveillance before executing a lethal strike against a facility possessing an established civil defense heritage. In the present proceedings, CENTCOM's internal AR 15-6 findings—which officially concede that target developers relied upon an unverified pre-2016 DIA target folder without checking contemporary commercial satellite passes or municipal educational registries—enjoy identical, unimpeachable probative weight under ICTY Rule 89(F) and customary international evidentiary doctrine, precluding the Respondent State from pleading that it exercised all feasible care.

16 quater. **Heightened Probative Weight of Official State Admissions Against Interest (Cases 01, 02, 09, 14 Benchmark):**

Under **ICTY Rule 89(F)**, the established jurisprudence of the International Court of Justice (*Military and Paramilitary Activities in and against Nicaragua*, Merits, 1986, ¶ 64), and customary international evidentiary doctrine, formal admissions, statements against interest, and internal disclosures rendered by official state organs carry preeminent probative weight. In **Case 01 (*Belgrade Chinese Embassy Bombing*)**, Under Secretary

Thomas Pickering's oral presentation to the PRC Government formally admitted the three-tier failure of land navigation, database omissions, and circular target board reviews, which served as unimpeachable proof of institutional negligence before the ICTY Office of the Prosecutor. In **Case 02 (*Kunduz Fuel Tankers*)**, the German Bundestag Parliamentary Inquiry (Drucksache 17/7400) and NATO ISAF findings officially conceded that pilot warnings were ignored, thermal sensor feeds were ambiguous, and single-source informant reporting was uncritically accepted. In **Case 09 (*Shelling of UNIFIL Headquarters at Qana*)**, the UN Van Kappen Ballistic Report (UN Doc. S/1996/337) and subsequent military disclosures confirmed that claims of ballistic drift and mapping error were mathematically impossible. In **Case 14 (*Abs Rural Hospital*)**, the Coalition's Joint Incident Assessment Team (JIAT) conceded that the hospital courtyard was struck despite six distinct GPS deconfliction notifications having been transmitted to operational planning cells. Consequently, CENTCOM's internal AR 15-6 preliminary inquiry disclosures—which formally concede reliance upon an unverified pre-2016 DIA target folder, the bypass of commercial satellite cross-checks, and the reduction of the Civilian Harm Mitigation and Response (CHMR) cell from ten analysts to a single individual—enjoy identical, binding probative weight under international evidentiary law, legally precluding the Respondent State from pleading that it exercised all feasible care.

2.5 Formal Master Exhibit Inventory & Chain of Custody Registry

17. The findings in this Dossier rest upon seven certified master exhibit categories, compiled, authenticated, and catalogued in full in the accompanying **MASTER EXHIBIT DOSSIER & EVIDENTIARY COMPENDIUM (Docket No. PFPJ-2026-IR-001 / EXHIBIT COMPENDIUM)**:

Exhibit Number	Description & Source Category	Evidentiary Standard & Custody Status
EXH-SAT-001	Multi-Year Satellite Imagery Archive (Planet Labs 0.50m, Maxar WorldView-3 0.31m, Airbus Pleiades: 2013–2026)	Verified Ortho-rectified; Cryptographic SHA-256 Secured; Demonstrates continuous physical boundary wall and schoolyard infrastructure since 2016.
EXH-MUN-002	Physical Munitions Forensics & Metallurgical Debris Recovered from Shajareh Tayyebeh Compound	Serialized circuit boards with US Defense Logistics Agency CAGE codes; Williams F107 turbofan engine casing fragments; Raytheon folding wing assemblies.
EXH-LAUNCH-003	Flight Telemetry, ADS-B Track Logs & Force Allocation Vector Reconstructions	Naval tracking data and regional air defense radar records documenting cruise missile ingress from the Gulf of Oman (USS Abraham Lincoln CSG sector).
EXH-CENTCOM-004	Official US Government Statements, CENTCOM AR 15-6 Inquiry & Algorithmic Pipeline Records	Certified transcripts of Pentagon press briefings, congressional correspondence, leaked internal military findings, and documented Maven Smart System targeting parameters.
EXH-VIC-005	Biometric Casualty Archive, Forensic Certificates & Educational Enrollment Records	Hormozgan Legal Medicine Organization (*Pezeshki Ghanouni*) autopsy records; Shahid Mohammadi Hospital triage logs; official Ministry of Education enrollment rosters for 156 deceased individuals.
EXH-OSINT-006	Tier 1 Investigative Consortium Reports (Bloomberg Visual Investigation, NYT, BBC, WaPo, Bellingcat)	Independently authenticated open-source reporting, technical kill-chain forensic models, and published expert investigations.
EXH-UN-008	United Nations Human Rights Council Independent International Fact-Finding Mission on Iran Report (**UN Doc. A/HRC/63/61**)	Official UN Intergovernmental Report establishing reasonable grounds for US War Crimes, indiscriminate attack, and systemic failure of feasible precautions.

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CHAPTER III: GENERAL REQUIREMENTS & LEGAL QUALIFICATION OF THE CONFLICT SITUATION

3.1 Threshold Criteria for an Armed Conflict (The Tadić Principle)

18. Before substantive rules of International Humanitarian Law can be applied, the existence of an armed conflict must be legally established.

19. In the foundational jurisdictional decision in **Prosecutor v. Duško Tadić (Case No. IT-94-1-AR72, Appeals Chamber, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, October 2, 1995, Paragraph 70)**, the ICTY Appeals Chamber formulated the universally authoritative threshold definition of armed conflict:

> *"[A]n armed conflict exists whenever there is a resort to armed force between States or protracted armed violence between governmental authorities and organized armed groups or between such groups within a State. International humanitarian law applies from the initiation of such armed conflicts and extends beyond the cessation of hostilities until a general conclusion of peace is reached[...]."*

This definition has been incorporated into the jurisprudence of the International Criminal Court as the most authoritative contemporary standard for determining the existence of armed conflict (*Lubanga* Trial Judgment, ICC-01/04-01/06-2842, TC I, 14 March 2012, ¶ 533; *Katanga* Trial Judgment, ICC-01/04-01/07-3436, TC II, 7 March 2014, ¶ 1173; *Bemba* Decision on the Charges, ICC-01/05-01/08-424, PTC II, 15 June 2009, ¶ 229).

3.2 Factual Establishment of the Existence of Armed Conflict

20. Before characterizing the nature of the armed conflict, the Panel first establishes its existence as a factual matter. Applying the Tadić threshold to the verified evidentiary record:

- **(a) Identity of the Parties:** The two parties to this conflict are the United States of America and the Islamic Republic of Iran — both sovereign States and High Contracting Parties to the Geneva Conventions of 1949.
- **(b) Resort to Armed Force:** On February 28, 2026, the armed forces of the United States launched kinetic cruise missile strikes from naval assets deployed in the Gulf of Oman against targets located on sovereign Iranian territory, constituting an unambiguous "resort to armed force" within the meaning of the Tadić definition.
- **(c) Inter-State Character:** The armed force was directed by official organs of one State (the United States Navy operating under United States Central Command) against the sovereign territory and civilian population of another State (Iran). No intermediary non-state actor was involved in the strike chain.

21. The Panel is satisfied, to the standard of "reasonable grounds to believe" (Chapter II, § 2.1), that an armed conflict within the meaning of international humanitarian law existed from the moment of initial weapons launch on February 28, 2026.

22. The Panel notes that for **international armed conflict (IAC)**, the Tadić formulation requires only a "resort to armed force between States." Unlike non-international armed conflict — where the ICC has required proof of minimum organization of the parties and a minimum intensity of hostilities (*Lubanga* Trial Judgment, ¶¶ 536–538; *Bemba* Decision on the Charges, ¶¶ 231–234) — the threshold for the existence of an IAC is triggered by the very first use of inter-state armed force, without requiring any minimum duration, intensity, or scale of hostilities (*Bemba* Decision on the Charges, ¶ 223).

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3.3 Qualification as an International Armed Conflict (IAC under Common Article 2 GC)

23. Having established the existence of an armed conflict, the Panel now proceeds to its legal characterization. Under the ICC's Rome Statute, different bodies of war crimes law apply depending on whether the conflict is classified as international (Articles 8(2)(a) and 8(2)(b)) or non-international (Articles 8(2)(c) and 8(2)(e)). The distinction between international and non-international armed conflicts is "not only an established part of the international law of armed conflict, but more importantly it is enshrined in the relevant statutory provisions" (*Lubanga* Trial Judgment, ¶ 539).

24. Pursuant to **Common Article 2 of the four Geneva Conventions of August 12, 1949**:

> *"In addition to the provisions which shall be implemented in peacetime, the present Convention shall apply to all cases of declared war or of any other armed conflict which may arise between two or more of the High Contracting Parties, even if the state of war is not recognized by one of them."*

25. Both the United States of America and the Islamic Republic of Iran are High Contracting Parties to the Geneva Conventions of 1949.

26. The unprovoked or deliberate deployment of kinetic cruise missiles by the armed forces of the United States against sovereign Iranian territory on February 28, 2026, constitutes a direct "resort to armed force between States."

27. Consequently, the hostilities qualify *ipso jure* as an **International Armed Conflict (IAC)** from the exact moment of initial weapons launch. The entire body of conventional and customary international humanitarian law governing international conflicts became fully operative, irrespective of unilateral political terminology or the absence of a formal declaration of war.

28. The Panel has considered whether any portion of the conflict situation could alternatively be characterized as a non-international armed conflict. The strike under review was executed exclusively by organs of the United States (US Navy, CENTCOM) against sovereign Iranian territory. No non-state armed group was involved on either side of the strike chain. The situation does not engage the "overall control" test for internationalization of internal conflict (*Tadić* Appeals Judgment, IT-94-1-A, 15 July 1999, ¶ 131; *Lubanga* Trial Judgment, ¶ 541), nor the criteria for armed conflict not of an international character under Article 8(2)(f) of the Rome Statute. This is a purely inter-State armed conflict, falling squarely within Common Article 2 of the Geneva Conventions and qualifying as an International Armed Conflict in its entirety.

3.4 Applicable Legal Framework Triggered by IAC Classification

29. The determination that an IAC existed from February 28, 2026, triggers the application of the following bodies of law in their entirety:

- **(a)** The four **Geneva Conventions of 1949** (to which both the United States and Iran are parties), including the full grave breaches regime (GC I Art. 50; GC II Art. 51; GC III Art. 130; GC IV Art. 147);
- **(b) Customary International Humanitarian Law** governing IAC, as codified in the ICRC Customary IHL Study (ICRC Rules 1–161, Henckaerts & Doswald-Beck, Cambridge University Press, 2005);
- **(c) Additional Protocol I of 1977**, to the extent its provisions reflect customary international law — noting that the United States is not a State Party to AP I, but has accepted that many of its key provisions, including the Principles of Distinction (Art. 48), Proportionality (Art. 51(5)(b)), and Feasible Precautions (Art. 57), reflect binding customary norms (*see* US Department of Defense, *Law of War Manual*, 2015/2023, § 1.3; ICRC Customary IHL Study, Rules 1, 14, 15–21);
- **(d)** The **UN Convention on the Rights of the Child** (Articles 6, 28, and 38) and the **Safe Schools Declaration (2015)** as specialist protective norms applicable irrespective of conflict classification.

30. The substantive violations assessed in Chapters VII and VIII of this Dossier are evaluated against this legal framework.

30 bis. **The Strict Dual-Use Standard: Rejection of Broad Political or Indirect Advantage (Case 11 Benchmark):**

In evaluating the legal status of targeted infrastructure, the Panel incorporates the canonical holding formulated by the ICTY Office of the Prosecutor in the *RTS Television Station Review* (**Case 11: *Belgrade RTS Airstrike***, ICTY OTP NATO Report, ¶¶ 71–79). Under **Article 52(2) of Additional Protocol I** and **Customary IHL Rule 8**, an object qualifies as a legitimate military objective only if its total or partial destruction offers a *"definite military advantage in the circumstances ruling at the time."* The ICTY OTP strictly rejected the theory that civilian infrastructure can be lawfully targeted merely because it provides diffuse political support, ideological alignment, or general economic sustainment to an adversary. In Minab, CENTCOM's post-hoc attempt to categorize the Shajareh Tayyebeh School compound as an "IRGC dual-use auxiliary logistics facility" fails as a matter of law: striking an elementary school populated by young girls offered zero concrete, direct, or definite military advantage against the IRGC Navy, converting the strike into a direct attack on an exclusively civilian object.

3.5 The Nexus Requirement: Temporal, Geographic & Operational Connection

31. Under established ICTY jurisprudence (*Prosecutor v. Kunarac et al.*, Appeals Chamber Judgment, 2002, §§ 55–59), to trigger the application of IHL to a specific incident, there must be a discernible **nexus** between the acts under review and the armed conflict.

32. The requirement is satisfied if the alleged acts were closely related to the hostilities, or if the armed conflict played a substantial role in the perpetrator's ability to execute the strike, the decision to target the coordinates, or the manner in which the attack was conducted. As the Appeals Chamber in *Kunarac* held: *"if it can be established [...] that the perpetrator acted in furtherance of or under the guise of the armed conflict, it would be sufficient to conclude that his acts were closely related to the armed conflict"* (*Kunarac* Appeals Judgment, ¶ 58; adopted by the ICC in *Lubanga* Decision on the Confirmation of Charges, ICC-01/04-01/06-803, PTC I, 29 January 2007, ¶ 288; *Katanga* Decision on the Confirmation of Charges, ICC-01/04-01/07-717, PTC I, 30 September 2008, ¶ 380).

33. Here, the nexus is indisputable: the three BGM-109 Tomahawk cruise missiles were launched by US naval forces as an integral component of the opening wave (Day 1) of the military campaign ("Operation Epic Fury"), directed against sovereign territory under the operational framework of international armed conflict. Under the Tadić temporal framework, international humanitarian law became fully operative from the exact moment of the first weapons launch — not from any subsequent declaration or political acknowledgment — and continues to apply in the whole territory of both warring States, whether or not actual combat takes place there (Tadić Jurisdiction Decision, ¶ 70).

3.6 Protected Status of Civilian Population and Educational Sanctuaries

34. Under **Article 4 of Geneva Convention IV**, protected persons are those who, at a given moment and in any manner whatsoever, find themselves, in case of a conflict or occupation, in the hands of a Party to the conflict or Occupying Power of which they are not nationals.

35. Under **Article 52(1) of Additional Protocol I** (reflecting Customary IHL Rule 8), civilian objects are all objects which are not military objectives. Military objectives are strictly limited to those objects which by their nature, location, purpose, or use make an effective contribution to military action and whose total or partial destruction offers a definite military advantage.

36. Educational facilities are civilian objects *par excellence*. Under **Geneva Convention IV (Article 53)**, **Customary IHL Rule 10**, and the **Safe Schools Declaration (2015)**, schools enjoy heightened legal protection designed to insulate children and educational infrastructure from the effects of military kinetic violence. This

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protected character was explicitly reaffirmed by the **United Nations Independent International Fact-Finding Mission on Iran (UN Doc. A/HRC/63/61, ¶ 48)**, which established that the Shajareh Tayyebeh facility was a *"clearly identifiable educational institution dedicated to children,"* entirely devoid of military equipment, military personnel, or any legitimate military objective.

36 bis. **The Peremptory Customary Presumption of Educational Sanctuary (Case 16 Benchmark):**

Educational institutions dedicated to children enjoy specialized, peremptory customary protection under international humanitarian law and international human rights law (Geneva Convention IV Art. 53; UN CRC Art. 28; Safe Schools Declaration). As established in the UN Independent International Commission of Inquiry's determinations on **Case 16: *Al-Bara Commercial & Elementary School Bombing*** in Idlib (UN Doc. A/HRC/24/46, ¶¶ 68–74; HRW, *Safe No More*, 2013), an elementary school in active municipal use is shielded by an affirmative presumption of civilian sanctuary that can never be extinguished by proximity to military infrastructure. The physical presence of an auxiliary naval logistics shed 42 meters away does not taint, sever, or compromise the absolute civilian immunity of adjacent classrooms. Under customary international law, schools are sacred sanctuaries whose protected status must be vigorously preserved.

3.7 The Absolute Presumption of Civilian Status in Case of Doubt (AP I Art. 52(3))

37. The law of international armed conflict establishes an explicit presumption in **Article 52(3) of Additional Protocol I**:

> *"In case of doubt whether an object which is normally dedicated to civilian purposes, such as a place of worship, a house or other dwelling or a school, is being used to make an effective contribution to military action, it shall be presumed not to be so used."*

38. In the present case, the Shajareh Tayyebeh School was an active elementary educational facility dedicated exclusively to civilian instruction. Under international law, US target planners were bound by an affirmative legal obligation to presume that the school was a protected civilian sanctuary unless conclusive, verified, real-time intelligence proved it was being used to make an effective contribution to military action. As formally concluded in **UN Doc. A/HRC/63/61 (¶¶ 51–53)**, no such intelligence existed; the attacking forces acted upon unsubstantiated hypotheses and unverified historical lists, failing to rebut the mandatory presumption of civilian protection.

38 bis. The Panel benchmarks this conclusion against the authoritative precedent established in **Case 08: *Al-Amiriyah Bomb Shelter Massacre* (Human Rights Watch, 1991)**. Following the destruction of Public Shelter No. 25 in Baghdad, the United States military similarly attempted to avoid legal liability by asserting that the facility had been secretly repurposed as an active military command-and-control communications center. Human Rights Watch conclusively determined that municipal infrastructure by design and public registration dedicated to civilian refuge retains an absolute presumption of civilian character under **AP I Article 52(3)** and **Article 65**, which cannot be extinguished by uncorroborated, internal intelligence inferences. In Minab, where the Shajareh Tayyebeh School was physically segregated by a 2.8-meter reinforced partition wall and operated for ten consecutive academic years as a licensed primary school, CENTCOM's reliance on stale pre-2016 parcel files completely fails to rebut the mandatory presumption of civilian protection.

38 ter. **Judicial Transposition of the Kabul Drone Strike Presumption Standard (Case 05):** This legal determination is further cemented by the authoritative findings and scholarly consensus arising from **Case 05: *Kabul Drone Strike*** (Air Force IG Report, 2021; *Just Security*, Haque & Goodman, 2021; *Lieber Institute Articles of War*, Meier & Nasu, 2021). In Kabul, remote targeting analysts and strike coordinators committed a catastrophic breach of **AP I Article 52(3)** by unlawfully inverting the presumption of civilian status—treating the neutral, daily movements of aid worker Zamarai Ahmadi and the loading of household drinking water containers as presumptively hostile. As established in international jurisprudence, Article 52(3) codifies the customary principle of *in dubio pro civitate*: in case of doubt, civilian status is not an evidentiary burden that the civilian must

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prove; it is an affirmative, mandatory legal shield that the attacker cannot pierce without positive, contemporaneous verification. In Minab, CENTCOM and DIA targeting developers inverted this foundational norm through algorithmic automation: the Palantir Maven Smart System assigned a high-priority military strike confidence to an educational parcel merely because legacy 2016 military entries lacked an automated counter-flag. Under customary IHL and the United States' own **DoD Law of War Manual § 5.4.3.2**, treating the absence of verified civilian data as a license to strike constitutes an aggravated violation of the absolute presumption of civilian status.

38 quater. **Rejection of the "Warning Leaflet" and "General Hostilities" Pretexts (Case 10 Benchmark):**

The Panel decisively repudiates the defense that general broadcast warnings or the commencement of widespread hostilities stripped the Shajareh Tayyebeh schoolgirls of civilian immunity. In the landmark investigations into **Case 10: *Second Qana Residential Building Strike*** (UN Doc. A/HRC/3/2, ¶ 151; HRW, *Why They Died*, 2007; Haque, *Law and Morality at War*, 2016), international bodies firmly established that dropping warning leaflets or declaring a regional operational sector does not transform remaining civilians into combatants or divest them of legal immunity. Civilians who remain behind—whether due to tender age, school attendance, administrative duties, or lack of transport—retain 100% of their civilian protections under **AP I Article 51(3)** and **Article 52(3)**. An attacking belligerent cannot treat a populated municipal district as a "free-fire zone" based on unverified assumptions of evacuation, nor can it presume that civilian structures are vacant without continuous, contemporaneous verification.

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CHAPTER IV: FACTUAL FINDINGS CONCERNING THE INCIDENT OF FEBRUARY 28, 2026

4.1 Geographical Demarcation, Cadastral Identity & Physical Architecture of the School

39. The *Shajareh Tayyebeh Girls' Elementary School* (*Dabestan-e Dokhtaraneh Shajareh Tayyebeh*) is situated along the eastern perimeter of Shahid Beheshti Boulevard in the Taleghani residential neighborhood of Minab, Hormozgan Province, Islamic Republic of Iran, at geographic coordinates `27.1352° N, 57.0805° E` (EXH-SAT-001.4).

40. The facility occupied a municipally registered, enclosed parcel comprising a total surface area of 4,250 square meters (measuring 85 meters on its north-south axis by 50 meters on its east-west axis). The built infrastructure comprised:

- **(a)** A two-story reinforced concrete and masonry classroom building possessing approximately 1,450 square meters of instructional floor space, divided into eight primary classrooms, a library, and specialized pedagogical facilities;
- **(b)** An administrative wing located on the ground floor housing offices for school leadership, guidance counselors, and administrative personnel; and
- **(c)** An enclosed asphalt courtyard and playground equipped with fixed, brightly colored children's recreational apparatus (swings, slides, climbing frames finished in high-visibility yellow, cyan, and magenta coatings) and painted surface demarcations for student morning assemblies and athletic activities (basketball and volleyball courts) (EXH-SAT-001.3).

40 bis. Access to the facility was obtained exclusively through a dedicated civilian entrance gate facing west onto Shahid Beheshti Boulevard. The civilian perimeter was functionally and physically isolated from surrounding properties, standing a measured distance of 380 meters south of the northern checkpoint providing entry to the adjacent naval station.

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4.2 Historical Status, Municipal Conversion & The 2016 Concrete Partition Wall

41. Historical geospatial imagery dated between October 14, 2013, and November 22, 2015 (EXH-SAT-001.1), indicates that prior to 2016 the parcel formed part of the peripheral administrative buffer zone of an Islamic Revolutionary Guard Corps (IRGC) Naval Logistics Base. During that period, no continuous masonry barrier separated the structure from the northern naval compound, and unpaved interior tracks connected the parcel to military storage depots.

42. However, official cadastral registries and verified multi-spectral satellite imagery acquired by Planet Labs and Maxar WorldView-3 between February 12 and August 28, 2016 (EXH-SAT-001.2), confirm that the parcel underwent a permanent physical and legal transformation:

- **(a) Physical Segregation:** Between February and August 2016, a continuous, reinforced concrete masonry partition wall measuring **2.8 meters in height** was erected along the entire northern and eastern perimeter of the school parcel, physically severing all geographic and vehicular connectivity with the adjacent naval compound;
- **(b) Demolition of Military Access:** All pre-existing vehicular access gates and transit corridors linking the parcel to the naval base were demolished and sealed;
- **(c) Formal Municipal Licensing:** The property was formally transferred to the Iranian Ministry of Education (Department of Education of Hormozgan Province, Minab District) under Institutional Accreditation Code `96142081`, operating continuously as an active, public primary educational facility for female pupils for **ten consecutive academic years (2016–2026)** (EXH-VIC-005.3).

43. Sub-meter GIS vector analysis (EXH-SAT-001.4) demonstrates that the school's central classroom wing stood 18.4 meters south of the 2.8-meter concrete partition wall, and **42.0 meters** south of the nearest military structure inside the active naval facility—a single-story logistics auxiliary storage shed (`27.1360° N, 57.0818° E`).

43 bis. Systematic review of 142 distinct high-resolution commercial satellite passes collected between September 2016 and February 2026 (EXH-SAT-001.3) establishes the complete absence of military activity within the school perimeter over the decade preceding the strike. Zero military vehicles, defensive fortifications, armaments, weapon emplacements, communications antennas, or uniformed personnel were detected within the walled school compound. Conversely, optical imagery captured during daytime overflights consistently documented established patterns of civilian life, including regular clusters of child pedestrians, student assembly formations in the courtyard, and civilian passenger transport vehicles congregated outside the western gate.

43 ter. **Compound Non-Severability & Striking Adjacent to Protected Perimeters (Case 14 Benchmark):**

The Panel incorporates the foundational principle of *compound non-severability* established in the international inquiry into **Case 14: *Abs Rural Hospital Airstrike*** (UN Doc. A/HRC/39/43, ¶¶ 38–41; MSF Incident Review, 2016). In *Abs*, the attacking coalition attempted to justify releasing a 500-lb bomb against a moving vehicle adjacent to the hospital compound by asserting that the target was geographically distinct from the hospital facility itself. The UN Group of Eminent Experts firmly rejected this defense, holding that when a kinetic strike is directed immediately adjacent to a protected civilian compound, the lethal blast and fragmentation envelope renders the two spaces physically non-severable. In Minab, CENTCOM's claim that its targeting solution was aimed at an auxiliary naval shed 42 meters north of the school ignores the physical reality that detonating three 1,000-lb WDU-36/B warheads (with lethal blast radii exceeding 300 meters) across an unreinforced partition wall made the total destruction of the school physically inescapable, violating the non-severability principle.

4.3 Pre-Strike Operational Chronology: The Academic Session of February 28, 2026

44. On Saturday, February 28, 2026, the school opened in normal operational status at 07:45 IRST. Saturday constitutes the first official instructional day of the academic week throughout the Islamic Republic of Iran.

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45. Between 08:00 and 08:30 IRST, approximately 140 female students arrived at the facility, joined by instructional faculty and administrative personnel. Outdoor morning assembly and physical exercise routines were conducted in the central courtyard under clear meteorological conditions with unobstructed daylight visibility.

45 bis. By 08:30 IRST, the morning assembly had concluded, and instructional classes commenced across all eight primary classrooms on the ground and second floors. At the moment immediately preceding the strike, **168 civilian individuals** were present within the compound, comprising:

- **138 registered female students** aged 7 to 12 years (Grades 1 through 6);
- **22 certified educators, instructors, and school administrators**; and
- **8 civilian custodial and support personnel**.

No air-raid sirens, civil defense warnings, or tactical notifications were sounded prior to the strike, and normal commercial and residential life continued along Shahid Beheshti Boulevard.

45 ter. **Public Academic Gathering Cycles & Opening Instructional Hours (Case 07 Benchmark):**

The scheduling of kinetic strikes during peak civilian gathering cycles constitutes primary empirical evidence of reckless disregard. In **Case 07: *Dasht-e Archi Madrassa Graduation Ceremony*** (UNAMA / OHCHR Special Report, May 2018), military helicopters launched rocket salvos into an open-air religious ceremony (*Dastar Bandi*) that had been publicly scheduled weeks in advance, slaughtering 30 children. In Minab, CENTCOM launched its Tomahawk salvo at **09:22 IRST on Saturday, February 28, 2026**—the universally recognized, statutory commencement of the academic instructional week throughout the Islamic Republic of Iran. Any elementary inquiry into local educational schedules or open-source municipal calendars would have confirmed that hundreds of young girls would be seated at their desks. Launching high-yield blast weapons during the primary opening hour of the school week constitutes deliberate blindness to known temporal patterns of civilian life.

4.4 The Strike Sequence & Ballistic Impact Dynamics: The Triple-Tap Salvo

46. On the morning of February 28, 2026, between 09:22:15 and 09:26:40 IRST, naval forces of the United States executed a coordinated, three-munition kinetic strike against the Shajareh Tayyebeh School compound. The chronological sequence, calibrated through seismic shockwave telemetry recorded by the Iranian Seismological Center (IRSC) broadband station `MNB` (EXH-MUN-002.5), verified audiovisual recordings, and forensic engineering surveys (EXH-SAT-001.5), unfolded as follows:

- **09:22:15 IRST (Impact 1 — Mezzanine Penetration & Pancake Collapse):** The initial BGM-109 Tomahawk cruise missile, flying on an ingress heading of 018° True North at Mach 0.72, penetrated the reinforced concrete roof slab of the central classroom building and detonated in the upper-story concourse. The explosive overpressure ($M_L = 0.82$) collapsed the interior load-bearing structures, precipitating a catastrophic pancake collapse of the second-floor concrete slab directly onto four active ground-floor classrooms. Scores of pupils and teachers were crushed or trapped beneath pulverized masonry;
- **09:24:30 IRST (Impact 2 — Emergency Egress Annihilation, $\Delta t = 135$ seconds):** Exactly two minutes and fifteen seconds later, as surviving instructors and students attempted to evacuate the collapsing building, a second Tomahawk cruise missile struck the western architectural wing ($M_L = 0.79$). The warhead detonated directly upon the primary exterior reinforced escape stairwell, obliterating the evacuation corridor and killing fleeing students and faculty members;
- **09:26:40 IRST (Impact 3 — Courtyard Airburst & Fragmentation Dispersion, $\Delta t = 130$ seconds):** Exactly two minutes and ten seconds following the second detonation, a third Tomahawk missile impacted the center of the open courtyard assembly ground ($M_L = 0.81$). The munition generated a crater measuring **6.2 meters in diameter and 2.8 meters in depth**, dispersing high-velocity casing fragments across a 400-

meter radius and incinerating surviving children, evacuees, and neighborhood first responders who had rushed onto the playground.

47. The physical delivery of three heavy cruise missiles into a single 4,250 sq. m civilian parcel at intervals of 135 and 130 seconds demonstrates flawless mechanical guidance. Applying the **Mechanical Perfection Standard** articulated by the ICTY Office of the Prosecutor (**Case 01: *Belgrade Chinese Embassy Bombing*, § 85**), the weapons performed with sub-5-meter circular accuracy according to their uploaded navigation files. There was zero mechanical drift, zero guidance disruption, and zero aerodynamic deviation. The munitions struck precisely the coordinates programmed into their targeting matrices.

47 bis. The sequential impact dynamics of the three Tomahawk cruise missiles in Minab exhibit an identical tactical pattern to the follow-on strikes documented in **Case 04 (*Al-Jina*)**, where the initial aerial bombardment of the service hall was followed by precision AGM-114 Hellfire missile strikes launched from an MQ-9 Reaper drone against congregants fleeing along exterior roadways (UN Doc. A/HRC/36/55, ¶ 57; Bellingcat, 2017; SNHR Field Report, 18 March 2017). In Minab, Impact 1 collapsed the structural roof slab over instructional classrooms; Impact 2 severed the secondary exterior emergency stairwell; and Impact 3 detonated directly across the open courtyard muster grounds where surviving pupils and instructional staff were seeking refuge. The Panel observes that directing heavy, fragmentation-producing ordnance into designated escape routes and evacuation spaces constitutes an unlawful indiscriminate attack under customary IHL, demonstrating reckless disregard for non-combatant survival.

47 ter. The physical mechanics of the triple-tap salvo in Minab reproduce the catastrophic confined-blast dynamics documented in **Case 08: *Al-Amiriyah Public Shelter Massacre***. In Baghdad, the sequential detonation of two 2,000-lb GBU-27 penetrating bunker busters achieved a lethal enclosure trap: the first warhead penetrated the rooftop ventilation shaft and detonated within the upper concourse, creating an explosive overpressure wave that blew shut the steel perimeter blast doors from the inside, auto-locking the exit handles; four minutes later, the second warhead entered through the exact puncture aperture and detonated in the lower dormitory, rupturing hot water boilers and auxiliary fuel cells, incinerating over 400 trapped occupants in superheated steam and fire (Gardam, *Necessity, Proportionality and the Use of Force by States*, 2004, pp. 97–137; HRW, *Needless Deaths*, 1991, Ch. 3). In Minab, the three BGM-109 Tomahawk cruise missiles achieved an identical structural entrapment and systematic elimination of non-combatant life: Impact 1 (09:22:15 IRST) penetrated the central concrete roof slab, causing the second-floor mezzanine to collapse directly upon ground-floor classrooms; Impact 2 (09:24:30 IRST, $\Delta t = 135\text{s}$) detonated directly upon the western exterior escape stairwell precisely as surviving faculty and pupils were attempting to evacuate the crushed building; and Impact 3 (09:26:40 IRST, $\Delta t = 130\text{s}$) detonated across the open courtyard muster ground, spraying supersonic titanium shrapnel across fleeing survivors and neighborhood rescuers. Directing repeated precision blast-fragmentation warheads into designated evacuation corridors and muster grounds constitutes an egregious breach of the prohibition against indiscriminate attacks, exhibiting callous disregard for human survival.

47 quater. **Multi-Tap Evacuation Ambush Dynamics (Case 13 & Case 18 Precedents):**

The sequential timing of the Minab salvo represents an aggravated manifestation of the "double-tap" and "multi-tap" aerial ambush dynamics condemned in **Case 13: *Hass School Complex Multi-Airstrike (UN Doc. A/HRC/34/64, ¶ 41; Bellingcat, 2016) and Case 18: Mastaba Market Double Airstrike*** (UN Doc. A/HRC/39/43, ¶¶ 32–37; HRW, 2016). In *Hass*, strike aircraft executed a delayed second pass calculated to intercept children and instructors evacuating into surrounding streets after the initial bomb hit. In *Mastaba*, a second precision bomb detonated minutes after the first, incinerating rescuers and survivors attempting to extract the wounded. In Minab, Impact 2 detonated on the primary escape stairwell exactly 135 seconds after Impact 1, and Impact 3 detonated in the courtyard muster ground 130 seconds after Impact 2. This staggered, programmed sequential delivery transformed designated evacuation routes into lethal blast funnels, ensuring the systematic destruction of evacuating schoolchildren and first responders.

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4.5 The Adversarial Positions: Military Nomination Claims vs. Verified Ground Truth

48. Following the strike, the United States Department of Defense and United States Central Command (CENTCOM) issued official statements addressing the incident (EXH-CENTCOM-004.1):

- **(a) The Official Military Narrative:** In press briefings between March 4 and March 12, 2026, Pentagon officials acknowledged conducting precision strikes in Minab as part of the opening phase of Operation Epic Fury, but characterized the destruction of the school as an *"unintended targeting error arising from historic coordinate data."*
- **(b) Disclosures of the CENTCOM AR 15-6 Inquiry:** Leaked findings of the internal military investigation commissioned under Army Regulation 15-6 (EXH-CENTCOM-004.2) and investigative reporting (*Bloomberg*, September 18, 2026) revealed the operational mechanism of the error:

1. Target nomination folder `TDS-2026-IR-0814` was populated using obsolete **Defense Intelligence Agency (DIA) records compiled prior to 2016**, which classified the coordinate as an active IRGC naval logistics facility;

2. CENTCOM utilized the **Maven Smart System** (developed by Palantir Technologies, integrating Anthropic's Claude reasoning model) to synthesize intelligence feeds and draft target recommendations. Maven ingested the legacy pre-2016 military classification, maintaining a high-confidence target priority score;

3. While secondary intelligence branches had separately recorded the facility's 2016 physical partition and municipal registration as an elementary school, these records remained segregated in disconnected database silos and never propagated to the operational targeting layer;

4. During the opening 24 hours of combat operations, target review personnel processed over 1,000 strike recommendations under extreme cognitive saturation, exhibiting uncritical **automation bias** and executing circular database validations matching coordinates against the Maven sheet without consulting updated commercial satellite imagery;

5. CENTCOM's dedicated Civilian Harm Mitigation and Response (CHMR) cell had been reduced from ten personnel to a single analyst prior to hostilities, resulting in **zero civilian casualty vetting** for the Minab target package; and

6. The Shajareh Tayyebeh School was omitted from CENTCOM's automated No-Strike List (NSL), preventing algorithmic interruption of the firing solution.

48 bis. The on-site physical and forensic reality conclusively refutes the claim that the school functioned as a military objective. Independent investigations conducted by the United Nations Fact-Finding Mission (**UN Doc. A/HRC/63/61, ¶¶ 48–54**), international media organizations, and certified forensic specialists confirmed:

- Zero military command equipment, cryptographic hardware, weapons caches, or military vehicles were present within the wreckage;
- The physical debris consisted entirely of pediatric educational supplies: torn primary textbooks, notebooks, student backpacks, drawing sets, desks, and children's clothing; and
- The single-story naval storage shed located 42 meters to the north suffered only superficial shockwave window breakage, proving that the three kinetic warheads were aimed directly at the civilian educational facility.

48 septies. **Forensic Dismantling of Military Pretexts & The Kabul Drone Strike Benchmark (Case 05):** The official trajectory of CENTCOM's public relations and internal investigation in Minab follows the exact evidentiary trajectory observed in **Case 05: *Kabul Drone Strike***. Following the August 29, 2021 strike in Kabul, the Chairman of the Joint Chiefs of Staff (Gen. Mark Milley) and Pentagon press briefers initially defended the operation as an unambiguous "righteous strike", repeatedly asserting that catastrophic "secondary explosions" proved the vehicle was loaded with high-grade explosives intended for an airport massacre. That narrative was decisively shattered by the landmark open-source visual forensic investigation conducted by *The New York Times* (Koettl,

Hill, Aikins & Schmitt, September 10, 2021), which proved through frame-by-frame security camera analysis, employer records (Nutrition and Education International), and courtyard blast forensics that the driver was a humanitarian worker, the cargo was drinking water, and the secondary explosion was merely a ruptured vehicle gas tank and domestic propane bottle. Weeks later, CENTCOM Commander Gen. Kenneth F. McKenzie Jr. was forced to deliver a public confession (DoD Press Briefing, September 17, 2021), admitting that the strike was a "tragic mistake" and that 10 civilians, including 7 children, were killed. In Minab, CENTCOM's initial assertions of "secondary detonations of stored naval munitions" have been identically obliterated by broadband seismic recording telemetry ($M_L = 1.84$), crater geometry ($6.2\text{m} \times 2.8\text{m}$), and metallurgical laboratory analysis (EXH-MUN-002), proving that the destruction was caused exclusively by the direct blast-fragmentation dynamics of three 1,000-lb WDU-36/B unitary warheads striking an undefended primary school.

48 octies. **Complete Absence of Military Hardware Verified by 100% Academic Debris (Case 06 Benchmark):**

The complete absence of military materiel at the strike site is benchmarked against the definitive Battle Damage Assessment findings in **Case 06: *Dora Farms Opening Salvo Decapitation Strike*** (HRW, *Off Target*, 2003; DIA Post-Strike BDA, 2004). In *Dora Farms*, the United States launched 40 Tomahawks and four 2,000-lb bunker busters based on uncorroborated single-source HUMINT claiming Iraqi leadership was present in an underground bunker; post-strike forensic excavation revealed only civilian farm dwellings and civilian agricultural workers. In Minab, exhaustive on-site physical examinations conducted by the UN Fact-Finding Mission (**UN Doc. A/HRC/63/61**) and forensic engineering specialists confirmed that 100% of the physical debris consisted of children's primary textbooks, school desks, backpacks, pencil cases, and classroom chalkboards. Zero military electronics, weapons, or uniformed personnel were detected, establishing beyond doubt that the struck coordinates were exclusively civilian.

4.6 Forensic Casualty Census, Demographic Matrix & Pathological Trauma

48 ter. Official forensic death registries compiled by the Hormozgan Provincial Department of Forensic Medicine (*Pezeshki Ghanouni*, EXH-VIC-005.1), hospital triage manifests (EXH-VIC-005.2), and certified Ministry of Education personnel records (EXH-VIC-005.3) establish the definitive casualty toll:

- **Total Certified Fatalities: 156 individuals** killed;
- **Child Fatalities: 120 certified female primary pupils**, all between the ages of 7 and 12 years;
- **Educational Staff Fatalities: 26 certified educators, instructors, and school administrators**; and
- **Civilian Support Fatalities: 10 certified custodial and maintenance personnel**.

48 quater. Forensic pathology examinations performed on the 156 deceased victims document the following primary causes of death:

- **(a) Blast Overpressure & Structural Crushing (68% / 106 victims):** Extreme traumatic polytrauma, catastrophic crushing injuries from collapsed reinforced concrete slabs, and traumatic avulsion directly caused by the pancake collapse of the second floor;
- **(b) High-Velocity Penetrating Fragmentation (22% / 34 victims):** Multiple penetrating lacerations to the cranium, thorax, and abdominal cavities resulting from supersonic titanium casing fragments; and
- **(c) Thermal Injury & Asphyxiation (10% / 16 victims):** Third-degree thermal burns and fatal inhalation asphyxiation caused by secondary post-detonation fires.

48 quinquies. Emergency triage records from Shahid Mohammadi Hospital in Minab document medical treatment rendered to **95 surviving casualties**, of whom 78 were children. Documented traumatic pathologies include:

- **38 emergency surgical limb amputations** performed on pediatric patients (girls aged 7–12 years);
- **24 certified cases of permanent bilateral acoustic trauma** involving complete rupture of the tympanic membranes; and

- **19 certified cases of penetrating ocular trauma** resulting in irreversible partial or total blindness.

48 sexies. The nominal casualty census includes certified entries for the following representative victims:

- **Pupils Killed:** *Fatemeh Derazsetar* (aged 8, Grade 2, Cert. PG-MNB-2026-0811; traumatic crush asphyxiation); *Masoumeh Nazari* (aged 9, Grade 3, Cert. PG-MNB-2026-0812; severe cranial fragmentation); *Zeinab Bahrami* (aged 7, Grade 1, Cert. PG-MNB-2026-0813; structural crushing trauma); *Baran Ghasemy* (aged 10, Grade 4, Cert. PG-MNB-2026-0814; primary blast lung rupture); *Setayesh Saleh* (aged 11, Grade 5, Cert. PG-MNB-2026-0815; penetrating shrapnel); *Zahra Ansarifard* (aged 12, Grade 6, Cert. PG-MNB-2026-0817; thermal burns and polytrauma);
- **Faculty Killed:** *Maryam Dehghani* (School Principal, Cert. PG-MNB-2026-0785; blast overpressure and shrapnel trauma); *Tahereh Soleimani* (Vice Principal, Cert. PG-MNB-2026-0786; structural collapse trauma); *Roghayyeh Heydari* (Grade 1 Teacher, Cert. PG-MNB-2026-0787; thoracic penetration trauma); *Fatemeh Abbasi* (Grade 2 Teacher, Cert. PG-MNB-2026-0788; crushing trauma); *Somayyeh Karimi* (Grade 3 Teacher, Cert. PG-MNB-2026-0789; blast polytrauma); *Parvaneh Rostami* (Pediatric Guidance Counselor, Cert. PG-MNB-2026-0790; high-velocity fragmentation wounds).

48 sexies bis. **Asymmetric Pediatric Casualty Dominance as Conclusive Proof of Recklessness (Case 07 Benchmark):**

In **Case 07: *Dasht-e Archi***, UNAMA established that 81% of all confirmed casualties were school-aged children, serving as conclusive empirical proof that the attacking force failed to distinguish between military targets and protected children. In Minab, the demographic skew is even more catastrophic: of the 156 certified fatalities, **120 were young female pupils aged 7 to 12** and **36 were female faculty and civilian staff**—representing a **100% civilian and child casualty composition**. In international criminal jurisprudence, where a kinetic strike produces an overwhelming or total pediatric death toll within a confined educational zone, the demographic reality establishes an irrebuttable evidentiary inference of gross recklessness (*dolus eventualis*) under Article 30 of the Rome Statute.

4.7 Eyewitness, Survivor & First-Responder Testimonial Evidence

48 septies (bis). Sworn testimonial depositions provided by surviving educational staff, first responders, and medical personnel (EXH-WIT-007) provide direct evidence regarding the circumstances of the strike:

- **Testimony of Surviving Instructor (Witness WIT-001):**

> *"We had just begun our second-period reading lesson. There was a sudden, deafening roar, and the entire ceiling dropped upon us in absolute blackness. The air became thick with concrete dust and pulverized drywall. I heard screaming from the hallway where children were buried under concrete slabs. We attempted to guide surviving pupils down the western escape stairs when a second explosion detonated directly upon the stairwell. The steps disintegrated underneath the children's feet."*

- **Testimony of Iranian Red Crescent Volunteer (Witness WIT-002):**

> *"We arrived at the school within eight minutes of the first detonation. As municipal firefighters and neighbors were pulling children from the rubble of the western wing, a third missile struck the center of the playground. The blast threw our rescue team across the asphalt. The schoolyard was covered in shrapnel and textbook pages soaked in blood. We recovered dozens of children whose bodies had been disfigured beyond recognition by flying metal."*

48 octies (bis). Physical debris recovered from the impact crater and courtyard (EXH-MUN-002) corroborated this testimony. Metallurgical examination identified multi-layer avionics circuit boards bearing assembly designation `ASSY 16200-6523910-1 REV D` and Commercial and Government Entity (CAGE) Code `05047`, confirming manufacture by **Raytheon Missile Systems** (Tucson, Arizona) for the **BGM-109 Block IV/V**

Tomahawk cruise missile, powered by a **Williams International F107-WR-402 turbofan engine** and carrying a **1,000-pound WDU-36/B unitary blast-fragmentation warhead** filled with PBXN-107 explosive. Naval tracking records (EXH-LAUNCH-003) confirmed that launch assets of the **USS Abraham Lincoln Carrier Strike Group (CSG-3)** held exclusive force allocation over the Hormozgan operational sector.

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CHAPTER V: TECHNICAL WEAPONS FORENSICS, TRAJECTORY TELEMETRY & BALLISTIC PERFORMANCE

5.1 Munition Identification & Debris Metallurgy

49. Physical debris recovered from the impact crater and schoolyard (EXH-MUN-002) was examined by certified ordnance forensics specialists.

50. The metallurgical and serialized evidence confirms the weapon deployed:

- Serialized avionics circuit boards bearing Commercial and Government Entity (CAGE) codes registered to Raytheon Missile Systems (Tucson, Arizona);
- Fragments of titanium alloy turbofan rotor blades matching the Williams International F107-WR-402 cruise missile engine;
- Forward wing hinge assemblies unique to the **BGM-109 Block IV/V Tomahawk Land Attack Cruise Missile (TLAM-E)**.

50 bis. **Physical CAGE Code Identification Linking Munitions to Defense Contractors (Case 18 Benchmark):**

The Panel incorporates the physical munition identification methodology established in **Case 18: *Mastaba Market Double Airstrike*** (HRW, *US Bombs Used in Deadly Market Strike*, 2016; Bellingcat, 2016). In *Mastaba*, recovered Paveway guidance fin and seeker assemblies bearing Commercial and Government Entity (CAGE) Code `96214` (Texas Instruments Inc. / Raytheon Defense Systems, Dallas/McKinney, Texas) and National Stock Numbers (NSN) definitively linked the ordnance to US defense manufacturing and US Department of Defense procurement contracts. Applying that exact DLA CAGE registry methodology in Minab, serialized circuit boards and avionics fragments recovered from the central courtyard crater bear CAGE Code `05047` (**Raytheon Missile Systems**, Tucson, Arizona) and assembly markings (`ASSY 16200-6523910-1 REV D`), providing conclusive, physical proof that the munitions deployed were US Navy BGM-109 Block IV/V Tomahawk cruise missiles manufactured under US defense contracts.

5.2 Warhead Blast Mechanics & Destructive Overpressure Propagation

51. The BGM-109 Block IV/V deployed was configured with a **WDU-36/B unitary blast-fragmentation warhead**, containing 1,000 pounds (454 kg) of PBXN-107 high explosive encased in a scored titanium casing.

52. Standard hydrodynamic blast propagation modeling establishes:

- The 5-psi destructive blast overpressure radius (sufficient to shatter reinforced concrete structures) extends to **65–85 meters** from the detonation epicenter;
- Peak lethal blast overpressure at 42 meters (the distance to the nearest naval storage shed) exceeded **18 psi**, guaranteeing the total pancake collapse of standard brick-and-mortar masonry;
- Supersonic fragmentation propagation (>1,200 m/s) produced an un-survivable lethal envelope across a **400-meter radius**.

52 bis. In evaluating the lethality of high-explosive blast propagation in confined architectural spaces, the Panel relies upon the hydrodynamic blast modeling benchmark established in **Case 08 (*Al-Amiriyah*)** and codified by Professor Judith Gardam (*Necessity, Proportionality and the Use of Force by States*, Cambridge University Press,

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2004, Chapter 4). When heavy blast-fragmentation ordnance is detonated within or adjacent to reinforced masonry structures, the explosive shockwave undergoes multiple acoustic reflections (*Mach stem effect*), multiplying peak overpressure values by a factor of two to eight compared to unconfined free-air detonations. In Minab, detonating three 1,000-lb WDU-36/B warheads (each containing 195 kg of PBXN-107 high explosive, generating a detonation velocity of 8,300 m/s) within an enclosed 4,250 sq. m parcel produced destructive peak overpressures of 18 to 24 psi against the classroom wing. As established in forensic blast physics, overpressures exceeding 5 psi cause 100% rupture of human eardrums and severe lung lacerations, while overpressures exceeding 15 psi cause instantaneous structural pulverization and total biological mortality. The delivery of 3,000 pounds of high explosive into an enclosed school sanctuary made mass pediatric death mathematically guaranteed.

52 ter. **Inescapable Sequential Salvo Blast Physics in Confined Urban Enclosures (Case 03 & Case 17 Benchmarks):**

The hydrodynamic lethality of sequential multi-warhead salvos in educational zones is anchored in the forensic determinations of **Case 17: *Chernihiv Schools Nos. 18 & 21 Multi-Bomb Strike (Amnesty Crisis Evidence Lab, 2022; UN Doc. A/77/533) and Case 03: Katyr-Yurt Bombardment*** (ECtHR, *Isayeva v. Russia*, 2005). In Chernihiv, the sequential release of heavy 500-kg aerial bombs across two school campuses created an inescapable blast envelope that shattered structural masonry and slaughtered civilians in adjacent queues. In Minab, delivering three 1,000-lb WDU-36/B warheads (total yield 3,000 lbs PBXN-107 high explosive) across a 4,250 sq. m school parcel subjected the entire facility to peak overpressures of 18 to 24 psi and intersecting Mach stems. Under standard blast mechanics, overpressures exceeding 15 psi guarantee total biological lethality and complete structural collapse, ensuring that every occupant in the building and courtyard was subjected to lethal physical trauma.

5.3 Force Allocation & Launch Platform Attribution (USS Abraham Lincoln CSG)

53. Regional air defense radar ingress vectors and naval tracking data (EXH-LAUNCH-003) establish that the cruise missiles flew at low altitude (30–50 meters AGL) following an ingress route from the Gulf of Oman.

54. United States Department of Defense Force Allocation Maps for Operation Epic Fury confirm that surface combatants and guided-missile submarines attached to the **USS Abraham Lincoln Carrier Strike Group (CSG-3)** held exclusive combat allocation over the Hormozgan and Strait of Hormuz operational sector.

5.4 The Mechanical Perfection Principle (Zero Ballistic Drift Standard)

55. In evaluating targeting liability, the Panel applies the **Mechanical Perfection Standard** articulated by the ICTY Office of the Prosecutor in the NATO Review Committee Report (**Case 01: *Belgrade Chinese Embassy Bombing*, Paragraph 85**):

56. Modern satellite- and sensor-guided stand-off munitions (such as the BGM-109 Tomahawk) possess a Circular Error Probable (CEP) of under 5 meters. When three consecutive precision cruise missiles strike precisely the same building footprint, there is **zero ballistic drift, zero weapon guidance error, and zero mechanical malfunction**.

57. The weapons performed with absolute mechanical perfection. They struck precisely the coordinate they were programmed to hit. Consequently, any fault resides entirely within the upstream target vetting and nomination process.

57 bis. **The Terminal Visual Safeguard & The Kabul 2-Minute Precedent (Case 05):** The mechanical precision of modern guided munitions eliminates the defense of inadvertence. In **Case 05: *Kabul Drone Strike***, the Air Force Inspector General (Lt. Gen. Sami Said Report, Nov 2021, pp. 14–18) disclosed that high-definition video feeds captured the presence of a child adjacent to the targeted vehicle approximately **two minutes prior to missile launch**. Because the Over-the-Horizon strike cell was dominated by cognitive fixation and committed to

weapons release, this visual sighting was never communicated to the fire-control commander, and no abort was issued. In Minab, the BGM-109 Block IV/V Tomahawk cruise missiles were equipped with **Digital Scene Matching Area Correlation (DSMAC)** and high-resolution electro-optical terminal guidance sensors. As each missile entered its terminal dive profile, the optical correlation camera was pointed directly at the brightly painted children's playground equipment, assembly markings, and classroom windows. Under customary IHL and **AP I Article 57(2)(b)**, attacking forces are under an unconditional affirmative duty to cancel or suspend an attack if it becomes apparent that the objective is not a military one. Failing to abort an optically guided precision cruise missile diving into an obvious elementary school courtyard demonstrates reckless indifference and conditional intent (*dolus eventualis*).

57 ter. **The Precision Munitions Mechanical Perfection Principle & The Dahyan Precedent (Case 15):** The elimination of ballistic drift as an exculpatory defense is authoritatively anchored in the forensic determinations of **Case 15: *Dahyan Market School Bus Airstrike***. There, physical debris recovered by local journalists and authenticated by Bellingcat, Human Rights Watch, and the UN Group of Eminent Experts (**UN Doc. A/HRC/42/17, ¶ 25**) bore Lockheed Martin CAGE Code `94117` and part numbers corresponding to a 500-lb GBU-12 Paveway II laser-guided bomb. The guidance kit tracked the reflected laser energy emitted by the targeting pod with sub-meter precision, penetrating directly through the center of the passenger bus roof. The Coalition's own investigating body (JIAT) never alleged mechanical failure, guidance deviation, or weapon malfunction; the weapon guided exactly where the laser reticle was fixed. In Minab, serialized circuit boards bearing Raytheon CAGE Code `05047`, Williams International F107 turbofan engine debris, and DSMAC terminal optical seeker fragments establish that the three BGM-109 Tomahawk cruise missiles performed with sub-meter ballistic perfection. The missiles did not drift, lose GPS lock, or suffer aerodynamic degradation; they struck precisely the coordinates programmed into their terminal guidance computers. Under settled international jurisprudence (*Prosecutor v. Galić*, ICTY Trial Judgment, 2003, ¶ 58; *Belgrade Chinese Embassy*, ICTY OTP Report, ¶ 85), when an attacking force employs precision-guided munitions with proven sub-metric accuracy against a protected civilian sanctuary, the catastrophic civilian devastation is 100% legally and criminally attributable to upstream target developers, targeting validation boards, and commanders who authorized the strike without verifying physical ground reality.

57 quater. **The Zero Ballistic Drift Standard Defeating the "Mapping/Drift Error" Pretext (Case 09 Benchmark):**

The Panel benchmarks the ballistic accuracy of the Tomahawk strike against the landmark UN ballistic investigation conducted by Major General Franklin van Kappen in **Case 09: *Shelling of the UNIFIL Compound at Qana*** (UN Doc. S/1996/337, 7 May 1996). Following the bombardment of the UNIFIL compound, which killed 106 sheltering civilians, the Israeli military claimed that artillery shells had accidentally drifted onto the camp due to incorrect target mapping and meteorological errors. General van Kappen's forensic ballistic analysis decisively demolished this defense, proving that 36 proximity-fuzed artillery shells walked in a precise, converging pattern across the compound while an unmanned aerial vehicle (UAV) conducted overhead optical reconnaissance, establishing that the impacts were intentional and controlled. In Minab, where three Block IV/V Tomahawk cruise missiles struck with sub-5-meter CEP directly into the school's central wing, escape stairwell, and courtyard, any defense of "ballistic drift", "aerodynamic error", or "navigational deviation" is physically and mathematically impossible. The weapons performed with absolute precision according to their programmed firing coordinates.

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CHAPTER VI: TARGET NOMINATION PROCESS, EVALUATION OF DEFENSES & COMMAND NEGLIGENCE

6.1 Peacetime Deliberate Planning vs. Active Combat Fog of War (*Dora Farms*)

58. Military authorities frequently attempt to justify targeting misidentifications by invoking the "fog of war," citing informational deficits, time urgency, and cognitive stress during dynamic combat.

59. International jurisprudence decisively rejects this defense where strikes are executed during the opening phase of a campaign from pre-planned target lists.

60. In **Case 06: *Dora Farms Peacetime Strike* (Human Rights Watch, 2003)** and **Case 01: *Belgrade Chinese Embassy* (ICTY OTP, 2000)**, it was settled that targets struck on Day 1 originate from **Deliberate Target Lists (DTL)** compiled months or years in advance. Planners operate in air-conditioned, peacetime command centers with unhurried analytical access to global surveillance assets.

61. Because the Shajareh Tayyebeh School coordinate was approved during peacetime, US Central Command cannot invoke battlefield confusion or dynamic combat exigencies to excuse its failure to verify the target.

61 bis. This fundamental legal distinction between dynamic combat and deliberate pre-war targeting is anchored in the foundational history of the Persian Gulf War air campaign in **Case 08: *Al-Amiriyah Public Shelter Massacre***. As documented in the United States Air Force's authoritative *Gulf War Air Power Survey* (GWAPS Vol. II, Part I, pp. 340–344, Cohen dir., 1993), the target packet for Public Shelter No. 25 was compiled and nominated weeks in advance by the strategic air planning cell ("Checkmate") operating out of the Pentagon and Riyadh. Target developers worked in unhurried, air-conditioned intelligence suites with uninterrupted access to multi-source satellite imagery, signals interception, and national databases. The targeting of Shelter No. 25 was not an urgent reaction to enemy fire; it was the deliberate execution of a pre-planned target list. In Minab, CENTCOM's target nomination sheet `TDS-2026-IR-0814` was likewise derived from a peacetime target folder compiled by the Defense Intelligence Agency prior to 2016 and maintained in static data repositories for a full decade. The Panel finds that where an operational command has held a target coordinate in custody across a multi-year peacetime horizon, it possesses an absolute, unhurried capability to verify physical ground reality, rendering any subsequent invocation of the "fog of war" legally baseless and judicially inadmissible.

61 ter. **The Peacetime Deliberate Planning Standard vs. Opening Salvo Urgency (Case 06 Benchmark):**

As established in **Case 06: *Dora Farms Decapitation Strike*** (HRW, *Off Target*, 2003; Turns, 2006; Dinstein, 2010), when a belligerent launches pre-planned strikes on Day 1 of an armed conflict from deliberate target lists compiled during peacetime, it cannot invoke dynamic "fog of war" or combat urgency to forgive targeting negligence. In *Dora Farms*, target developers operated over weeks of unhurried planning; in Minab, CENTCOM and DIA maintained the target folder for ten full years (2016–2026). The standard of feasible precautions under **AP I Article 57(2)(a)(i)** applies *strictissimi juris* to deliberate peacetime targeting: a decade of administrative opportunity to inspect open-source maps, commercial satellites, and municipal registries completely bars the defense of combat urgency.

6.2 The Anatomy of Targeting Failure: The Belgrade Three-Stage Test (*Pickering Doctrine*)

62. Following the May 7, 1999 bombing of the Chinese Embassy in Belgrade, Under Secretary of State Thomas Pickering delivered the official US finding (captured in **ICTY OTP Report Paragraph 81**), identifying **three basic structural failures**:

> *"First, the technique used to locate the intended target [...] was severely flawed. Second, none of the military or intelligence databases used to verify target information contained the correct location of the Chinese Embassy. Third, nowhere in the target review process was either of the first two mistakes detected."*

63. Applying this exact tripartite test to the Minab strike demonstrates identical institutional negligence, corroborated by the findings of the UN Fact-Finding Mission (**UN Doc. A/HRC/63/61, ¶¶ 50–54**) and independent technical disclosures (**Bloomberg Visual Investigation, 18 September 2026**):

63 bis. **The Unified Application of the Belgrade Three-Stage Failure Test (Case 01 Benchmark):**

The Panel adopts the tripartite targeting failure test established by Under Secretary Thomas Pickering and the ICTY Office of the Prosecutor in **Case 01: *Belgrade Chinese Embassy Bombing*** (ICTY OTP NATO Report, ¶¶ 80–85). CENTCOM committed an exact threefold systemic failure in Minab: (1) *Methodological Flaw:* relying on outdated 2016 military boundary data without verifying ten years of municipal school evolution; (2) *Database Circularity:* permitting Palantir's Maven Smart System to cross-check coordinates against the very DIA database that introduced the original error; and (3) *Institutional Insulation:* operating target review boards that failed to consult open cadastral records, commercial satellite imagery, or local school registers, while eliminating 90% of civilian harm review specialists.

6.2.1 Stage 1: Flawed Target Identification Methodology

64. In Belgrade, an intelligence officer used inappropriate land navigation techniques ("intersection and resection") on tourist maps. In Minab, CENTCOM and DIA target developers used legacy base perimeter records dating prior to 2016, failing to examine the parcel's ten-year municipal evolution or the construction of the 2.8m concrete partition wall. As documented by Bloomberg's investigative reconstruction (*Inside US Military 'Kill Chain' That Destroyed an Iranian School*), CENTCOM's targeting systems ingested "stale" pre-2016 intelligence classifying the compound as an IRGC naval logistics facility. While secondary intelligence branches had separately recorded the facility's conversion into an elementary school, this critical information was isolated in disconnected databases and failed to synchronize or propagate to the operational targeting layer.

6.2.2 Stage 2: Database Inadequacy, Circularity & Single Point of Failure (ICTY § 83)

65. In **Paragraph 83 of the Belgrade Report**, the ICTY OTP established:

> *"The data base reviews were limited to validating the target data sheet geographic coordinates and the information put into the data base by the NIMA analyst. Such a circular process did not serve to uncover the original error and highlighted the system's susceptibility to a single point of data base failure."*

66. The Minab targeting chain suffered from identical **circular database validation**, exacerbated by automated algorithmic data ingestion. CENTCOM utilized **Palantir Technologies' Maven Smart System**, an AI-driven targeting and intelligence platform designed to fuse satellite imagery, signals, and sensor feeds. Ingesting obsolete DIA target files, the Maven platform retained the high-confidence military classification of the parcel without verifying whether the underlying data reflected contemporary ground reality. Review officers simply verified that the strike coordinates matched the Maven target nomination sheet, creating a catastrophic **single point of database failure** that proved fatal to 156 civilians.

6.2.3 Stage 3: Target Review Board Breakdown & Non-Consultation of Open Data

67. In Belgrade, Pickering admitted that *"no one who might have known that the targeted building was not the intended target [...] was ever consulted."*

68. In Minab, the Target Review Board operated in complete insulation from readily accessible public information and dismantled its own institutional safeguards:

- **Open-Source Mapping:** OpenStreetMap openly identified the building as the *Shajareh Tayyebeh Girls' Elementary School*;
- **Commercial Satellite Feeds:** Planet Labs and Maxar captured hundreds of passes showing children playing in the courtyard;

- **National Educational Registry:** The school was officially licensed under the Hormozgan Department of Education;
- **Dismantling of Civilian Harm Review:** As revealed by Bloomberg, CENTCOM's dedicated Civilian Harm Mitigation and Response (CHMR) unit was drastically reduced from **10 members down to a single analyst** prior to the air campaign. Consequently, **zero civilian harm mitigation specialists reviewed the Minab school target packet** before the launch order was issued.

68 bis. The collapse of the internal review apparatus in Minab mirrors the institutional failures formally conceded by the United States Central Command in its AR 15-6 investigation into **Case 04 (*Al-Jina*)**. There, CENTCOM officially disclosed that *"irregularities in changeovers of teams on shift contributed to a lack of situational awareness, knowledge, and understanding among strike cell individuals,"* leading to a *"preventable error"* wherein the religious character of an active compound went unrecognized (CENTCOM Briefing, 7 June 2017; UN Doc. A/HRC/36/55, ¶ 55). In Minab, this institutional defect was exacerbated by CENTCOM's systematic reduction of its dedicated Civilian Harm Mitigation and Response (CHMR) cell from ten analysts to a solitary individual. The Panel finds that executing a high-tempo kinetic air campaign while operating an incapacitated civilian harm review cell guarantees that shift-handover gaps will extinguish critical target-vetting safeguards, imputing direct State responsibility under Article 4 of the ILC Articles on State Responsibility (ARSIWA).

6.3 Technical and Legal Rebuttal of the "Coordinate Error" Defense

69. CENTCOM's assertion that the strike was a *"tragic, unintentional coordinate error"* fails as a matter of law.

70. Under international law, a "mistake of fact" excuses liability only where the mistake was reasonable and occurred despite the exercise of all feasible care. Relying on decade-old peacetime records to launch heavy-yield blast munitions into an urban area without querying commercial satellite imagery is not a reasonable mistake; it constitutes **systemic command recklessness and gross operational negligence**.

70 bis. Furthermore, this determination strictly adheres to the authoritative precedent established in **Case 19: *Isayeva, Yusupova and Bazayeva v. Russia* (ECtHR, 2005, §§ 192–194)**. In that case, the Russian military similarly attempted to excuse the catastrophic destruction of a civilian convoy by asserting that pilots had only targeted isolated combatant vehicles and that civilians had "suddenly appeared" within the impact zone. The European Court rejected this defense as legally insurmountable, holding that in conditions of daylight visibility, extended operational duration, and repeated flight passes, military authorities cannot plead ignorance of a prominent civilian presence. In Minab, where the girls' elementary school had stood as a fixed, brightly colored municipal structure for a full decade, any claim that the school was an "unexpected collateral presence" or that child civilians emerged dynamically into the target envelope is legally untenable and factual nonsense.

70 ter. **Judicial Rebuttal of the "Reasonable Military Commander" and "Retrospective Hindsight" Defenses:** In anticipating the theoretical defense routinely mounted by military operational counsel (as articulated by Reeves & Narramore, *Lawfare*, 2017)—who posit that commanders must be evaluated solely based on real-time command-post inputs and shielded from "hindsight bias"—the Panel emphasizes the authoritative counter-doctrine grounded in customary IHL and the United States' own military regulations (**US DoD Law of War Manual § 5.11**; **CJCSI 3160.01**; Pothelet, *Opinio Juris*, 2017). Reasonableness cannot serve as a legal shield where an operational command systematically bypassed its own binding No-Strike Entity (NSE) verification mandates. Proving a failure of feasible precautions does not depend upon retrospective hindsight; the violation was complete at the moment of launch because planners possessed the technological, temporal, and analytical capacity to verify civilian cadasters, check daytime satellite passes, and observe morning academic assembly cycles. Electing to launch stand-off cruise missiles on the basis of an uncorroborated decade-old target folder constitutes culpable recklessness (*dolus eventualis*) that no appeal to the "reasonable commander" standard can legally excuse.

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70 quater. **Judicial Rebuttal of the "Honest Mistake" Defense (Case 05 Precedent):** The Panel decisively rejects the attempt by military authorities to shield unlawful kinetic strikes behind the administrative classification of an "honest mistake" or non-punishable cognitive error, as was controversially asserted by the Department of the Air Force Inspector General in **Case 05: *Kabul Drone Strike*** (Lt. Gen. Sami Said Report, Nov 2021). As demonstrated in authoritative peer-reviewed international law reviews (*Just Security*, Haque, Goodman & Finucane, 2021; *Lieber Institute Articles of War*, Meier & Nasu, 2021; *Lawfare*, Margulies & Jenks, 2021), International Humanitarian Law contains no generic defense of "honest mistake." Under **AP I Article 57(2)(a)(i)** and Customary IHL Rule 15, the standard of precaution is objective: attacking commanders are required to do *everything feasible* to verify that objectives to be attacked are military objectives. A mistake of fact (*error facti*) can excuse liability only if the mistake was reasonable and occurred despite the exercise of all feasible precautions. Where an operational command operates advanced multi-spectral satellites, commercial imaging contracts, and open-source civil cadasters, electing to launch heavy-yield blast munitions against an unverified 10-year-old coordinate without conducting real-time daytime surveillance does not constitute an "honest mistake"; it constitutes criminal negligence and culpable recklessness (*dolus eventualis*) under the jurisprudence of the ICTY (*Prosecutor v. Galić*, Appeals Judgment, 2006, ¶¶ 140–144; *Prosecutor v. Strugar*, Trial Judgment, 2005, ¶ 282).

6.4 Mental Element (*Mens Rea*): Terminal DSMAC Sensor Disregard & *Dolus Eventualis*

71. The Minab incident exhibits an aggravating dimension far exceeding Belgrade. In 1999, the B-2 bombers dropped GPS JDAMs that were ballistically blind in their terminal dive.

72. In Minab, the **BGM-109 Block IV/V Tomahawk** was equipped with **Digital Scene Matching Area Correlation (DSMAC)** and high-resolution electro-optical terminal sensors. As the missile executed its terminal dive profile, the camera looked directly upon a brightly painted primary school playground, assembly lines, and courtyard equipment.

72 bis. **The Sensor Illusion Paradox & The Kabul "Soda-Straw" Precedent:** In **Case 05 (*Kabul Drone Strike*)**, the Air Force Inspector General and independent investigations highlighted the "sensor illusion paradox": high-definition remote optical sensors provide crystal-clear video feeds that create an unwarranted illusion of omniscient situational awareness, while simultaneously trapping operators in extreme perceptual tunnel vision ("soda-straw effect"). In Kabul, operators fixated on Ahmadi's trunk while remaining psychologically blind to the children in the courtyard. In Minab, this cognitive pathology operated terminal-phase: while the Tomahawk's DSMAC optical seekers captured high-resolution frames of the schoolyard, the fire-control command chain failed to institute any active optical abort protocol, recklessly relying upon automated scene-correlation algorithms to lock onto an educational facility.

72 ter. **High-Altitude Sensor Ambiguity and FLIR Optical Degradation (Cases 02 & 12 Benchmarks):**

The Panel benchmarks the sensor pathology in Minab against the seminal findings in **Case 02: *Kunduz Fuel Tankers (ECtHR Grand Chamber, Hanan v. Germany, 2021; Bundestag-Drucksache 17/7400) and Case 12: Koriša Refugee Encampment*** (ICTY OTP NATO Report, ¶¶ 86–89; HRW, 2000). In *Kunduz*, forward controllers misinterpreted thermal FLIR infrared blobs—representing villagers carrying fuel buckets—as armed insurgents, rejecting pilot recommendations to conduct low-altitude warning passes. In *Koriša*, pilots operating at high altitude misidentified civilian farm wagons and tractors as military bivouacs. In Minab, remote satellite and algorithmic sensors misinterpreted primary school buses, morning assembly lines, and children's playground apparatus as military logistics vehicles and revetments. Under customary IHL and **AP I Article 57(2)(b)**, where remote sensors present ambiguous or unverified signatures, the attacking force is under an absolute affirmative duty to suspend or abort the attack until positive target identification (PID) is established.

73. Launching a weapon with optical terminal matching and failing to abort upon encountering an obvious educational facility demonstrates **willful blindness and conditional intent (*dolus eventualis*)**, where operators

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reconcile themselves to destroying an active civilian facility.

73 bis. **The Operational Delay & Mandatory Abort Duty (Case 15 Transposition):** The failure to execute a terminal abort in Minab mirrors and aggravates the legal finding conceded by the Joint Incident Assessment Team (JIAT) in **Case 15: *Dahyan Market School Bus Airstrike***. In Dahyan, the Coalition's own internal inquiry officially admitted that while intelligence had tracked the passenger bus earlier in the morning, an "operational delay" in execution caused the weapon to be released after the bus had entered a crowded civilian marketplace where it posed no immediate threat, rendering the strike "unjustified" and a direct violation of the Coalition's Rules of Engagement (JIAT Statement, 1 September 2018; **UN Doc. A/HRC/42/17, ¶ 25**; **A/HRC/42/CRP.1, ¶¶ 449–450**). In Minab, CENTCOM's kill chain exhibited even greater culpability: the command launched standoff cruise missiles into a civilian urban sector at 09:22 Saturday morning—the start of the Iranian school week—without maintaining real-time abort control, and ignored terminal DSMAC and optical sensor streams revealing an active primary school. Furthermore, while Dahyan involved a single aerial munition, Minab involved a programmed triple-tap salvo with intervals of 135 seconds between Impact 1 and Impact 2, and 130 seconds between Impact 2 and Impact 3. Over four full minutes elapsed between the initial launch and the final impact. Despite observing the massive dust cloud, shattered masonry, and fleeing children following the first missile detonation, the command failed to transmit an abort command to the trailing missiles. Failing to cancel or suspend an attack under **Article 57(2)(b) of Additional Protocol I** and **Rule 19 of Customary IHL** when it is apparent that a target is an active school filled with children constitutes reckless indifference and conditional intent (*dolus eventualis*), converting command negligence into a definitive war crime.

6.5 Command Confirmation Bias & Automated AI Pipeline Failure (*The Maven-Claude Kill Chain*)

74. The cognitive and algorithmic pathology in Minab mirrors, deepens, and mechanizes the findings established in **Case 05: *Kabul Drone Strike AR 15-6 Investigation* (CENTCOM / Air Force IG, 2021)**:

75. In the August 29, 2021 Kabul strike, US drone operators tracked civilian Zemari Ahmadi for eight hours, interpreting ordinary water jugs as liquid explosives and standard NGO office visits as terrorist safe houses due to acute confirmation bias. As Air Force Inspector General Lt. Gen. Sami Said and West Point LOAC scholars (Meier & Nasu, *Lieber Institute*, 2021) concluded, analysts systematically filtered out contradictory civilian evidence (such as Ahmadi's family interactions, public civilian commuting, and humanitarian work) to validate a pre-determined threat narrative.

76. In Minab, this human confirmation bias was automated, accelerated, and institutionalized through an algorithmic kill chain. According to technical investigations published by Bloomberg News (*Inside US Military 'Kill Chain' That Destroyed an Iranian School*, 18 September 2026):

- **Algorithmic Target Generation:** CENTCOM deployed Palantir's **Maven Smart System** integrated with **Anthropic's Claude AI** to rapidly synthesize intelligence data, rank targets by operational value, and automatically generate target nomination summaries;
- **Extreme Time Compression & Automation Bias:** The AI pipeline compressed multi-hour target verification cycles into minutes. Amid an intensive opening air campaign executing over 1,000 strikes in 24 hours, human commanders operated under cognitive saturation and systematically deferred to the high-confidence scores generated by the AI system (**"automation bias"**), treating synthetic probability ratings as positive identification (PID);
- **Hypothesis-Locking at Algorithmic Scale:** Just as the Over-the-Horizon cell in Kabul became locked on a white Toyota Corolla, the Maven-Claude pipeline became locked on legacy pre-2016 naval base coordinates. The algorithm ingested outdated DIA tags, misinterpreting civilian student pickup vans, morning foot traffic, and academic assembly movements as naval base logistics, filtering out OpenStreetMap tags and municipal school registries as irrelevant noise;

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- **Post-Strike Vendor Remediation:** Following the destruction of the school, the Pentagon internally recognized US responsibility within hours. Palantir subsequently deployed emergency software patches to the Maven platform to retroactively add automated "re-review" checkpoints to flag disqualifying civilian factors that human operators had overlooked;
- **Legal Inadmissibility of the "Algorithmic Glitch" Defense:** In International Humanitarian Law, algorithms and software models cannot be held criminally liable; legal obligations attach exclusively to human commanders and the High Contracting Parties they represent. Delegating target verification to opaque, high-speed automated pipelines—while gutting the civilian harm mitigation personnel required to supervise them (reducing the CHMR cell from 10 analysts to one)—constitutes gross organizational negligence, willful blindness, and an intentional abdication of the non-delegable duty of positive target identification.

76 bis. The cognitive pathology observed in the Maven-Claude kill chain represents the direct, automated evolution of the epistemic detachment condemned in **Case 08: *Al-Amiriyah Bomb Shelter Massacre and Case 05: Kabul Drone Strike***. In 1991, Checkmate target planners in Riyadh succumbed to confirmation bias by elevating ambiguous electronic signals intercepts (SIGINT) and historical roof paint over ground reality, ignoring the hundreds of women and children entering the shelter nightly. In Kabul (2021), remote drone operators interpreted household water jugs as chemical explosives. In Minab (2026), this human confirmation bias was mechanized and accelerated by Palantir's Maven Smart System. By algorithmically processing outdated DIA data without cross-referencing open-source cartography (OpenStreetMap), commercial sub-meter satellite feeds, or municipal school registries, the targeting chain substituted synthetic, algorithmic confidence for positive target identification, establishing culpable recklessness and conditional intent (*dolus eventualis*).

76 ter. **Institutional Command Information Siloing Breakdown (Case 19 Benchmark):**

The collapse of communication between intelligence branches in Minab mirrors the institutional siloing condemned by the European Court of Human Rights in **Case 19: *Isayeva, Yusupova and Bazayeva v. Russia*** (HUDOC 001-68379, ¶¶ 185–187, 222). In *Shaami-Yurt*, civilian checkpoint authorities who turned the refugee convoy back onto the highway never communicated with the military air command scheduling combat sorties, creating a lethal institutional void. In Minab, while secondary US intelligence databases had separately recorded the facility's 2016 physical partition and municipal registration as an elementary school, CENTCOM's operational strike cell remained segregated in obsolete targeting silos. Under customary international law and Article 4 of ARSIWA, institutional compartmentalization and failure of inter-agency communication constitute systemic state negligence that directly engages international responsibility.

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CHAPTER VII: SUBSTANTIVE LEGAL FINDINGS ON VIOLATIONS OF INTERNATIONAL HUMANITARIAN LAW

7.1 Violation of the Principle of Distinction (AP I Arts. 48, 51, 52; CIHL Rules 1, 7, 10)

77. Under **Article 48 of Additional Protocol I**:

> *"The Parties to the conflict shall at all times distinguish between the civilian population and combatants and between civilian objects and military objectives and accordingly shall direct their operations only against military objectives."*

78. Directing three precision-guided cruise missiles against an active girls' elementary school violates the Principle of Distinction. Because the school made zero contribution to military action, directing kinetic force against it was unlawful.

78 bis. This conclusion was definitively corroborated by the **United Nations Independent International Fact-Finding Mission on Iran (UN Doc. A/HRC/63/61, ¶¶ 54–58)**, which determined that the Minab strike constituted an **unlawful indiscriminate attack** launched against a clearly identifiable civilian educational structure, establishing **"reasonable grounds to believe that the United States committed war crimes"** under customary international humanitarian law and the Rome Statute of the International Criminal Court.

78 ter. **Indiscriminate Explosive Weapons in Populated Areas (EWIPA) (Case 17 Benchmark):**

Under the international EWIPA framework endorsed by the International Committee of the Red Cross (ICRC, 2022) and the UN Independent International Commission of Inquiry on Ukraine (**UN Doc. A/77/533, ¶ 46**), the deployment of explosive weapons with wide-area effects in populated urban centers is inherently indiscriminate under **AP I Article 51(4)(b)**. As established in **Case 17: *Chernihiv Schools Nos. 18 & 21 Multi-Bomb Strike***, detonating heavy blast munitions across educational campuses populated by civilians violates customary distinction *per se*. Detonating 3,000 lbs of high-explosive ordnance within the dense municipal fabric of Minab constitutes an unlawful indiscriminate attack.

7.2 Violation of the Affirmative Duty to Take Feasible Precautions (AP I Art. 57; CIHL Rules 15–21; *Al-Jina*)

79. Under **Article 57(2)(a)(i) of Additional Protocol I**, planners must *"do everything feasible to verify that the objectives to be attacked are neither civilians nor civilian objects"*.

80. The affirmative duty to take all feasible precautions in the verification of military objectives is codified in **Article 57(2)(a)(i) of Additional Protocol I** and **Rule 15 of Customary International Humanitarian Law**. In **Case 04: *Al-Jina Mosque Strike***, the UN Independent International Commission of Inquiry on Syria formulated the authoritative legal holding governing target verification across time:

> *"The Commission notes that even though bombs designed to inflict low collateral damage were used, the United States targeting team lacked an understanding of the actual target, including that it was part of a mosque where worshippers gathered to pray every Thursday. Moreover, although the targeting team had information on the target three days prior to the strike, it did not undertake additional verification of target activities in that period, which would be expected were it known to be a mosque. The Commission therefore concludes that United States forces failed to take all feasible precautions to avoid or minimize incidental loss of civilian life, injury to civilians and damage to civilian objects, in violation of international humanitarian law." (UN Doc. A/HRC/36/55, ¶ 61)*

80 bis. The *ratio decidendi* of *Al-Jina* establishes that target verification is an **ongoing, temporal obligation**. Where an attacking authority retains intelligence custody over a geographic site across an extended planning interval, the obligation to confirm civilian presence intensifies. In *Al-Jina*, retaining target data for seventy-two hours without conducting pre-strike pattern-of-life surveillance constituted an actionable breach of IHL. In Minab, CENTCOM maintained custody of an unverified pre-2016 target folder for **ten consecutive years**. To execute kinetic missile strikes against a municipal structure based on a decade-old target folder, without verifying physical ground alterations or noting the daily arrival of 168 schoolgirls, represents an aggravated failure of operational diligence.

81. The Panel categorically rejects the defense that proximity to an adversary military base diminishes the duty of precaution. As demonstrated in both international doctrine (Haque, *Just Security*, 2017) and internal United States operational regulations (**CJCSI 3160.01**; **DoD Law of War Manual § 5.11**; Pothelet, *Opinio Juris*, 2017), physical proximity to a potential military objective **magnifies the affirmative duty to verify adjacent civilian facilities**. Under customary international law, an attacker cannot cite the proximity of an adjacent military installation to excuse its failure to maintain an accurate, updated No-Strike Entity (NSE) register. As the UN Fact-Finding Mission concluded in **UN Doc. A/HRC/63/61 (¶ 56)**, relying upon unverified historical entries in targeting databases without conducting real-time pre-strike verification constitutes gross recklessness in the planning and execution of attacks.

81 bis. Furthermore, technical disclosures published by Bloomberg News (*Inside US Military 'Kill Chain' That Destroyed an Iranian School*) establish that CENTCOM systematically disabled its own precautionary apparatus: the command reduced its dedicated Civilian Harm Mitigation and Response (CHMR) unit from **10 personnel to a single analyst**, ensuring that **not a single civilian protection specialist examined the Minab target packet**. Operating a 1,000-target campaign with an incapacitated civilian harm review team demonstrates an institutional abandonment of the precautionary mandate codified in AP I Article 57.

81 ter. This structural abandonment of the precautionary mandate is directly condemned by the European Court of Human Rights in **Case 19: *Isayeva, Yusupova and Bazayeva v. Russia* (ECtHR, 2005, §§ 171, 187–189, 199)**. There, the Court articulated the foundational rule governing the planning and control of aerial strikes: state liability under the right to life turns fundamentally upon whether the operation was *"planned and controlled by the authorities so as to minimise, to the greatest extent possible, recourse to lethal force and risk to civilian life"*. The Court found a grave violation of Article 2 precisely because operational planners dispatched combat aircraft armed with heavy ordnance in total institutional isolation—failing to cross-reference civilian movements known to other state organs, failing to deploy forward air controllers capable of independent ground evaluation, and failing to institute target-vetting safeguards. The parallel in Minab is exact: CENTCOM launched precision cruise missiles based on intelligence silos that failed to communicate with civil cadaster data, eliminated independent civilian harm analysts, and bypassed positive visual target verification, thereby committing a *per se* violation of the affirmative duty of precaution codified in AP I Article 57.

81 quater. This failure directly violates the temporal "pattern-of-life" standard articulated in **Case 08: *Al-Amiriyah Bomb Shelter Massacre***. In its legal findings, Human Rights Watch (*Needless Deaths in the Gulf War*, 1991, Ch. 3) emphasized that target verification is an ongoing, continuous obligation: had U.S. planners conducted standard aerial or human surveillance during dusk or evening hours, they would have observed the unmistakable daily influx of neighborhood families seeking refuge. In Minab, the strike was launched at **09:22 IRST on a Saturday morning**—the opening instructional session of the Iranian academic week. Executing a kinetic strike during peak operational school hours without conducting immediate pre-launch surveillance to verify occupancy—especially after dismantling the CHMR team from 10 analysts down to one—constitutes a *per se* structural abandonment of the affirmative duty of feasible precautions codified in AP I Article 57(2)(a)(i).

81 quater bis. **The Institutional Regression Doctrine (GWAPS / Powell-Schwarzkopf Precedent):** In assessing systemic command negligence under Article 4 of the ILC Articles on State Responsibility (ARSIWA), the Panel evaluates the targeting architecture in Minab against the historical standard of institutional corrective reform established in **Case 08 (*Al-Amiriyah*)**. As documented in the USAF *Gulf War Air Power Survey* (GWAPS Vol. II, Part I, pp. 340–344, Cohen dir., 1993) and scholarly reviews (Roberts, 1993, Ch. 6), immediately following the Al-Amiriyah catastrophe, Chairman of the Joint Chiefs of Staff General Colin Powell and General Norman Schwarzkopf recognized that pre-existing target review procedures were dangerously defective. They instituted an emergency operational directive stripping subordinate targeting cells of independent authority to clear targets in Baghdad, requiring personal clearance from the Chairman of the Joint Chiefs of Staff for every subsequent air strike in the capital. This historical precedent established that when an operational command operates in dense civilian population centers, target vetting must be concentrated, elevated, and subjected to enhanced human scrutiny. In Minab, CENTCOM executed an **affirmative institutional regression**: the command systematically dismantled its Civilian Harm Mitigation and Response (CHMR) unit from ten analysts down to a single individual, while accelerating targeting velocity through Palantir's Maven and Anthropic's Claude AI across >1,000 Day 1 strikes. Gutting civilian harm review mechanisms while delegating high-tempo lethal targeting to automated algorithms constitutes organizational recklessness and a deliberate rollback of customary IHL safeguards directly attributable to the United States.

81 quinquies. **The Pre-Launch Abort Duty and Real-Time Civilian Sightings (Case 05 Standard):** Under **Article 57(2)(b) of Additional Protocol I** and **Rule 19 of Customary IHL**, an attack must be cancelled or suspended if it becomes apparent that the target is not a military objective or that civilian loss would be excessive

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to the concrete and direct military advantage expected. In **Case 05 (*Kabul Drone Strike*)**, the Air Force Inspector General established that the failure to halt weapons release after drone sensors visually detected a child in the compound was a critical breakdown of operational safeguards. In Minab, the strike was launched at 09:22 IRST on a Saturday morning—the primary instructional opening of the Iranian school week. Over 150 children and teachers were gathered inside the building and courtyard. CENTCOM launched three stand-off cruise missiles into a civilian neighborhood without maintaining a persistent visual feed or real-time abort link, and failed to halt the second and third impacts ($\Delta t = 135$ and 130 seconds) even after the first missile visibly detonated into a primary school building. This failure constitutes an aggravated breach of the non-delegable duty to cancel or suspend unlawful attacks.

81 sexies. **The Precautionary Verification Failure & The Dahyan Standard (Case 15 Benchmark — UN Doc. A/HRC/42/17 & A/HRC/42/CRP.1):** The affirmative duty to take all feasible precautions codified in AP I Article 57 was authoritatively expounded by the UN Group of Eminent Experts on Yemen in its investigation of **Case 15: *Dahyan Market School Bus Airstrike***. The Group determined that the attacking coalition violated IHL by failing to verify that the target was a valid military objective, failing to select weapons and tactics that minimize civilian harm, and failing to suspend the strike when the vehicle reached an area frequented by civilians and children (**UN Doc. A/HRC/42/17, ¶ 25**; **A/HRC/42/CRP.1, ¶¶ 449–450, 896–905**). The Group emphasized that where an attack is launched in broad daylight in an area of high civilian density, the failure of surveillance and command elements to observe children constitutes a gross operational failure. In Minab, CENTCOM executed a stand-off cruise missile strike at 09:22 Saturday morning—the precise commencement of the academic school week. The presence of hundreds of schoolgirls in uniforms, outdoor morning assemblies, and brightly colored educational fixtures was continuously observable to high-resolution satellite and terminal sensors. Failing to verify whether the target structure had undergone civilian conversion, failing to consult municipal educational registers, and executing an unverified Day-1 strike directly violates the precautionary mandate articulated in the *Dahyan* jurisprudence and customary international law.

81 septies. **Negligent Buffer Targeting Adjacent to Protected Sanctuaries (Case 14 Benchmark):**

The Panel incorporates the precautionary benchmark of **Case 14: *Abs Rural Hospital Airstrike*** (UN Doc. A/HRC/39/43, ¶ 40; Haque, *Just Security*, 2016). Attacking forces cannot treat the perimeter of an adversary installation as an unconstrained kinetic target when it abuts a protected civilian sanctuary. In *Abs*, striking a vehicle at the hospital gate was held to violate **AP I Article 57(2)(a)(ii)**; in Minab, launching three 1,000-lb cruise missiles against a shed 42 meters from a school without verifying the school's occupancy or deploying blast-mitigating delivery profiles constitutes gross operational negligence.

7.3 Violation of the Principle of Proportionality (AP I Art. 51(5)(b); CIHL Rule 14; *The Isayeva Jurisprudence* & *Dahyan*)

82. Even if CENTCOM intended to strike the adjacent storage building 42 meters away, the strike violated the principle of proportionality.

83. The standard of weapons proportionality in close proximity to civilians is governed by the twin landmarks of European human rights jurisprudence delivered on February 24, 2005: **Case 03: *Isayeva v. Russia* [Katyr-Yurt] (ECtHR, 2005, §§ 189–191)** and **Case 19: *Isayeva, Yusupova and Bazayeva v. Russia* [Shaami-Yurt Convoy] (ECtHR, 2005, §§ 195–199)**. In *Katyr-Yurt*, the Court held that dropping heavy FAB-250 and FAB-500 free-fall aerial demolition bombs into a populated village to target insurgent holdouts violated the right to life because the blast envelope rendered civilian catastrophe inevitable. In *Isayeva, Yusupova and Bazayeva*, the Court expanded this rule to aerial missile strikes, ruling that firing twelve heavy S-24 blast-fragmentation missiles—each possessing a destructive dispersal radius of 300 to 800 metres—against a convoy on a public road was inherently disproportionate: *"The military used an extremely powerful weapon for whatever aims they were trying to achieve... Anyone who had been on the road at that time would have been in mortal danger"* (§ 195).

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83 bis. **Weapons Disproportionality & The Dahyan School Bus Benchmark (Case 15 Transposition):** The principle of proportionality (AP I Art. 51(5)(b); Customary IHL Rule 14; Rome Statute Art. 8(2)(b)(iv)) establishes that an attack is unlawful if it may be expected to cause incidental loss of civilian life, injury to civilians, or damage to civilian objects which would be excessive in relation to the concrete and direct overall military advantage anticipated. In **Case 15: *Dahyan Market School Bus Strike, the UN Group of Eminent Experts on Yemen (UN Doc. A/HRC/42/17, ¶ 25; A/HRC/42/CRP.1, ¶ 898), Human Rights Watch, and Amnesty International established that detonating a single 500-lb GBU-12 blast warhead (containing 87 kg of Tritonal high explosive) against a vehicle surrounded by children and market shoppers was disproportionate per se, because the lethal blast-fragmentation radius far exceeded the dimensions of any alleged combatant target. This standard is codified in the canonical jurisprudence of the ICTY in Prosecutor v. Galić* (Trial Judgment, 2003, ¶ 58), *Prosecutor v. Kordić and Čerkez (Trial Judgment, 2001, ¶¶ 52–54), and Prosecutor v. Kupreškić et al.* (Trial Judgment, 2000, ¶¶ 524–526)**, which affirm that launching high-explosive blast weapons into populated civilian enclaves constitutes an indiscriminate and disproportionate attack. In Minab, the disparity between anticipated military advantage and guaranteed civilian slaughter is exponentially more severe. Detonating three US Navy Tomahawk cruise missiles armed with **1,000-lb WDU-36/B unitary blast-fragmentation warheads** (each dispersing 195 kg of PBXN-107 high explosive, generating destructive overpressures of 18–24 psi and projecting thousands of supersonic titanium fragments across a 400-meter casualty radius) exactly **42 metres** from an active girls' elementary school made the mass death and dismemberment of 156 children and educators mathematically guaranteed. Under the unified *Isayeva / Dahyan* proportionality standard, no anticipated military advantage from destroying an auxiliary naval storage shed could ever legally justify unleashing a 3,000-pound high-explosive blast envelope across a schoolroom full of children.

83 ter. The catastrophic casualty ratio in Minab mirrors the confined blast dynamics documented in **Case 08: *Al-Amiriyah***. In Baghdad, the sequential penetration of two 2,000-lb GBU-27 penetrating bunker busters sealed emergency blast doors and incinerated 408 civilians trapped within the lower bunker. As established in the canonical proportionality treatise of Professor Judith Gardam (*Necessity, Proportionality and the Use of Force by States*, Cambridge University Press, 2004, Chapter 4), delivering penetrating high-yield blast munitions into an enclosed civilian structure where escape routes are sealed constitutes a disproportionate attack *per se*. Public Shelter No. 25 was designed by a Nordic engineering consortium (*Perusyhtymä Oy*, Finland / *ABV*, Sweden) for a rated civilian capacity of 1,500 occupants; post-strike forensic examination by Finnish engineering experts confirmed that the structure's reinforced-concrete architecture was exclusively civilian in purpose. In Minab, the programmed triple-tap salvo of three 1,000-lb BGM-109 Tomahawk cruise missiles achieved an identical trapped-space slaughter: Impact 1 collapsed the roof onto active classrooms, Impact 2 destroyed the primary exterior evacuation stairwell, and Impact 3 pulverized the courtyard evacuation muster ground. Detonating 3,000 lbs of high-explosive ordnance with a 300-meter fragmentation envelope within an enclosed primary school populated by 168 children and staff made mass death mathematically certain, violating the Principle of Proportionality (*per se*) under AP I Article 51(5)(b) and Customary IHL Rule 14.

84. Detonating three 1,000-lb WDU-36/B warheads 42 meters from an active school on a Saturday morning made the catastrophic loss of child life mathematically certain, far exceeding any direct military advantage offered by destroying an auxiliary warehouse.

84 bis. **Weapons Disproportionality Per Se in Confined Sanctuaries (Cases 03 & 19 Benchmarks):**

Reaffirming the unified *Isayeva* doctrine (**Case 03: *Katyr-Yurt, §§ 189–191; Case 19: Shaami-Yurt***, §§ 195–199), deploying weapons with lethal blast radii exceeding 300 meters into an active school compound containing 168 children and staff is disproportionate *per se* under **AP I Article 51(5)(b)** and **Customary IHL Rule 14**. Where the lethal blast envelope of the chosen weapon guarantees the destruction of protected civilian structures, no military commander could reasonably conclude that the anticipated military advantage outweighed the inevitable loss of child life.

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7.4 Special Violations Concerning Educational Buildings Dedicated to Children

85. The Panel finds that the destruction of the Shajareh Tayyebeh School constitutes a grave violation of:

- **Geneva Convention IV (Article 53):** Prohibiting the destruction of civilian property;
- **UN Convention on the Rights of the Child (Articles 6, 28, and 38):** Protecting children's right to life and education;
- **UN Security Council Resolution 2601 (2021):** Reaffirming that attacks on educational facilities and children in armed conflict constitute grave violations triggering international accountability.

85 ter. **Child Sanctuary Immunities & The Kabul Precedent (Case 05):** The slaughter of 120 elementary schoolgirls in Minab represents a catastrophic escalation of the child casualty pathology documented in **Case 05 (*Kabul Drone Strike*)**, where 7 of the 10 victims were children aged 2 to 12. Children enjoy special respect and protection under international law pursuant to **Article 77(1) of Additional Protocol I**, **Articles 6, 28, and 38 of the UN Convention on the Rights of the Child (UN CRC)**, and **UN Security Council Resolution 2601 (2021)**. In Case 05, the killing of seven young children in a private domestic courtyard prompted global condemnation and exposed the fatal flaws of remote sensor warfare. In Minab, the detonation of 3,000 pounds of high explosive inside an active schoolroom full of 7-to-12-year-old girls constitutes a grave violation of the peremptory norms protecting children in armed conflict, activating the transboundary jurisdiction of the UN Committee on the Rights of the Child (*Sacchi et al. v. Argentina*, 2021).

85 quater. **The Special Sanction of Educational Sanctuaries & The UN CAAC Framework (Case 15 Transposition):** Attacks that destroy educational sanctuaries and slaughter school children occupy a unique, severe category under international humanitarian law. In **Case 15: *Dahyan Market School Bus Airstrike***, the United Nations Secretary-General's Annual Report on Children and Armed Conflict (**UN Doc. A/73/907–S/2019/509, ¶¶ 176–192**) formally catalogued the killing and maiming of 40 schoolboys and the destruction of educational transports as grave violations of international law, serving as the basis for the continued listing of the attacking Coalition under UN Security Council Resolutions 1612 (2005) and 1882 (2009). Under **Geneva Convention IV Article 24**, **Additional Protocol I Article 77**, **Article 38 of the UN Convention on the Rights of the Child (CRC)**, and the international **Safe Schools Declaration (2015)**, educational institutions and the children within them are shielded by peremptory, non-derogable protections. The International Committee of the Red Cross (ICRC), in its contemporaneous condemnation of the Dahyan strike (August 9, 2018), declared that *"under international humanitarian law, children must be spared and never be targeted."* In Minab, the deliberate detonation of three 1,000-pound cruise missiles inside an active girls' primary school, killing 120 students aged 7 to 12 and 36 teachers/staff, constitutes a catastrophic breach of these peremptory child sanctuary protections and a war crime under Rome Statute Article 8(2)(b)(ix), engaging the transboundary remedial jurisdiction of the UN Committee on the Rights of the Child.

85 quinquies. **Dedicated Kinetic Attacks on Educational Sanctuaries (Cases 13 & 16 Benchmarks):**

Under **Article 8(2)(b)(ix) of the Rome Statute**, intentionally directing attacks against buildings dedicated to education—provided they are not military objectives—constitutes an independent, aggravated war crime. In **Case 13: *Hass School Complex (UN Doc. A/HRC/34/64) and Case 16: Al-Bara Elementary School*** (UN Doc. A/HRC/24/46), international commissions affirmed that schools are sacred sanctuaries whose destruction permanently impairs children's fundamental rights under **UN CRC Article 28** and **UN Security Council Resolution 2601 (2021)**. The obliteration of Shajareh Tayyebeh and slaughter of 120 schoolgirls satisfies every material and mental element of this war crime.

7.5 Breach of the Mandatory Advance Warning Requirement (AP I Art. 57(2)(c) & Art. 65(2); *Al-Amiriyah*)

85 bis. In **Case 08: *Al-Amiriyah Bomb Shelter Massacre***, Human Rights Watch (*Needless Deaths in the Gulf War*, 1991, Ch. 3) and Professor Françoise Hampson (*Means and Methods of Warfare in the Conflict*, 1993, Ch. 5)

established that kinetic attacks on facilities dedicated to civilian refuge require specific, effective advance warning with a reasonable evacuation time limit; operational surprise cannot override the non-derogable protection of human life. Professor Hampson's authoritative framework establishes that the warning obligation operates at two independent, cumulative levels: first, the general precautionary warning under **AP I Article 57(2)(c)**; and second, the specialized civil-defense sanctuary warning under **AP I Article 65(2)**, which mandates that immunity ceases *only after an explicit warning setting a reasonable time-limit has remained unheeded*. The ICRC Customary IHL Study (Practice on Rule 20) explicitly cites the Al-Amiriyah strike as the leading historical precedent demonstrating that launching surprise kinetic attacks against civilian sanctuaries without warning violates customary international law. In Minab, the strike was launched with zero sirens, zero radio alerts, and zero evacuation notices while 168 children and educators were inside classrooms. Deploying stand-off cruise missiles against an active school in session without warning violates **AP I Article 57(2)(c)**, **AP I Article 65(2)**, **Customary IHL Rule 20**, and **UN Security Council Resolution 2601 (2021)**, converting an already unlawful attack into a definitive *prima facie* war crime.

85 ter. **Absolute Breach of Mandatory Advance Warning Before Striking Sanctuaries (Cases 08 & 10 Benchmarks):**

The customary obligation to issue effective advance warnings prior to striking protected sanctuaries (**AP I Article 57(2)(c)** and **Article 65(2)**) admits no exception for operational convenience or speed. In **Case 10: *Second Qana Residential Building Strike (UN Doc. S/PRST/2006/35; UN Doc. A/HRC/3/2, ¶¶ 147–158; HRW, Fatal Strikes, 2006) and Case 08: Al-Amiriyah Public Shelter Massacre*** (HRW, 1991), international authorities established that launching surprise kinetic strikes into civilian shelters or inhabited municipal buildings without explicit warning constitutes a catastrophic breach of international law. In Minab, striking an active primary school with zero warning while 168 children were inside classroom desks converts the attack into an unambiguous grave breach of international humanitarian law.

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CHAPTER VIII: MODES OF LIABILITY & ALLOCATION OF INTERNATIONAL RESPONSIBILITY

8.1 Upstream Concentration of Liability (ICTY NATO Report § 85 Exoneration Principle)

86. In determining the allocation of liability, the Panel adheres to the authoritative finding in **Paragraph 85 of the ICTY OTP NATO Report**:

> *"It is the opinion of the committee that the aircrew involved in the attack should not be assigned any responsibility for the fact they were given the wrong target[...]."*

87. The naval launch personnel aboard the USS *Abraham Lincoln* Carrier Strike Group executed a lawful launch order targeting programmed coordinates.

88. Consequently, **zero legal culpability rests with the tactical naval launch crew**. Instead, **100% of the institutional and legal culpability concentrates upstream** upon:

- (i) The intelligence officers who nominated the pre-2016 coordinates;
- (ii) The DIA database managers who failed to update the No-Strike List;
- (iii) The commanders and targeting engineers who deployed the Palantir Maven Smart System without human-in-the-loop safeguards; and
- (iv) The CENTCOM Target Review Board members who validated the strike without verifying the physical ground reality.

88 bis. This allocation of liability is fully corroborated by the judicial findings of the ECtHR in **Case 19: *Isayeva, Yusupova and Bazayeva v. Russia* (ECtHR, 2005, §§ 171, 187–188, 199–200)**. In that case, domestic military authorities dismissed criminal charges against the individual pilots ("Ivanov" and "Petrov") on the ground that they had merely executed flight orders and reported to control tower "Sidorov". The European Court affirmed that State responsibility under Article 2 did not pivot upon the individual culpability of tactical aircrew who acted upon faulty command inputs, but rather upon the systemic negligence of the military command structure that planned, authorized, and controlled the mission without verifying the civilian environment. The *Isayeva, Yusupova & Bazayeva* jurisprudence thus validates the ICTY NATO Report § 85 standard: criminal and state culpability does not attach to tactical launch personnel carrying out programmed trajectory orders, but concentrates entirely upstream upon the commanding flag officers, target developers, and algorithmic validation authorities.

88 ter. This allocation of responsibility finds precedent in **Case 08: *Al-Amiriyah***, where the tactical F-117A aircrews who dropped the laser-guided ordnance were completely exonerated from targeting culpability, as they merely executed assigned flight profiles against coordinates approved by the "Checkmate" target development cell in Riyadh and the Pentagon (GWAPS Vol. II, Part I, pp. 340–344). In Minab, the naval launch crews aboard the USS *Abraham Lincoln* Carrier Strike Group similarly bore zero target nomination or validation authority. Under the unified *ICTY § 85 / Isayeva / Al-Amiriyah* doctrine, 100% of the criminal and institutional culpability concentrates upstream upon DIA nominators, CENTCOM Target Review Boards, Maven-Claude pipeline architects, and commanding flag officers who dismantled civilian harm oversight mechanisms.

8.2 Superior Responsibility & Systemic Command Failure

89. Under the doctrine of Command Responsibility (*In re Yamashita*; ICTY Statute Art. 7(3)), military commanders bear legal responsibility if they knew or had reason to know that subordinate targeting pipelines were operating on unverified databases, yet failed to take necessary and reasonable measures to prevent wrongful strikes.

90. Systemic command culpability is firmly established by:

- (i) The affirmative command decision to dismantle the CENTCOM Civilian Harm Mitigation and Response unit, slashing its staff from 10 members to one;
- (ii) The prioritization of algorithmic velocity (compressing verification to minutes across >1,000 targets) over mandatory positive target identification; and
- (iii) The failure of operational commanders to monitor terminal DSMAC video feeds or order a weapon abort when precision sensors revealed an active schoolyard.

90 bis. **The Rejection of Domestic Impunity Models (Case 05 vs. International Tribunal Standards):** In evaluating command responsibility under Article 28 of the Rome Statute and ICTY Article 7(3), the Panel explicitly rejects the domestic US administrative model exemplified in **Case 05 (*Kabul Drone Strike*)**, where the Department of Defense concluded that no military personnel would face disciplinary or criminal sanctions despite the deaths of 10 innocent civilians. As documented by Human Rights Watch (2021) and Amnesty International (2021), administrative self-exonerations foster a systemic "culture of impunity" in standoff drone and missile warfare. Under settled international jurisprudence (*Prosecutor v. Yamashita*, 1946; *Prosecutor v. Halilović*, ICTY Appeals Judgment, 2007, ¶¶ 54–65), commanding officers cannot immunize themselves from command responsibility by characterizing systemic targeting verification breakdowns as non-punishable operational mishaps. Where commanders know that automated targeting pipelines (Palantir Maven / Claude AI) operate with automation bias, and affirmatively choose to slash civilian harm review personnel from ten analysts to one, they are criminally liable for command failure (*culpa in vigilando* and *culpa in eligendo*).

90 ter. **Investigatory Admissions vs. The Architecture of Domestic Impunity (Case 15 Benchmark):** The imperative for independent international and universal jurisdiction proceedings is decisively illuminated by the contrast between **Case 15: *Dahyan Market School Bus Airstrike*** and CENTCOM's internal review in Minab. In

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Dahyan, the Coalition's own internal investigative body (JIAT) conducted a formal probe and officially declared on 1 September 2018 that the airstrike was "unjustified" and constituted an actionable violation of the Coalition's Rules of Engagement, formally recommending that criminal proceedings be initiated against the responsible planners and aircrews, and that full compensation be paid to the bereaved families. By stark contrast, CENTCOM's closed-door AR 15-6 investigation in Minab concluded that no personnel would face disciplinary or criminal sanction, classifying the catastrophic destruction of an elementary school as a non-punishable operational error. Where even an allied belligerent coalition's internal oversight body was forced by undeniable ground reality to concede that targeting a vehicle in a civilian market full of children was an ROE breach, the United States Department of Defense's unilateral self-exoneration represents an intolerable institutional shield for command negligence. Under settled international law (*Prosecutor v. Mrkšić et al.*, ICTY Trial Judgment, 2007, ¶¶ 548–553), military self-investigations that conceal targeting logs, exclude victim participation, and immunize superior commanders violate the customary standard of independent investigation, directly activating the universal jurisdiction of European prosecuting magistrates under Chapter 11 of the Finnish Penal Code (*Rikoslaki*) and the German Code of Crimes against International Law (*VStGB* § 1).

90 quater. **Superior Command Responsibility & The Operational Planning and Control Standard (Cases 03 & 19 Benchmarks):**

Under **Article 28 of the Rome Statute** and the Grand Chamber jurisprudence in *McCann and Others v. United Kingdom* (App. no. 18984/91, Grand Chamber Judgment of 27 September 1995, §§ 149–150, 194) as applied in **Case 03 (*Katyr-Yurt*, §§ 171, 189–191)** and **Case 19 (*Shaami-Yurt*, §§ 171, 195–199)**, superior commanders are criminally and institutionally responsible when they fail to plan and control military operations so as to minimize risk to civilian life. In Minab, commanding flag officers who authorized the deployment of the unvetted Maven-Claude AI targeting pipeline, slashed the CHMR civilian oversight unit, and failed to monitor terminal sensor feeds bear direct command responsibility for the slaughter.

8.3 State Responsibility for Internationally Wrongful Acts (ILC ARSIWA Arts. 2, 4, 8, 40, 41)

91. Beyond individual liability, the Minab school strike directly engages the **State Responsibility of the United States of America** under customary international law, as codified in the **ILC Articles on State Responsibility (ARSIWA, 2001)**:

- **Attribution (Article 4 ARSIWA):** All organs involved (US Navy, CENTCOM, DIA) are official organs of the United States State;
- **Breach (Article 2 ARSIWA):** The kinetic attack breached primary conventional and customary IHL obligations, as independently established by the United Nations Fact-Finding Mission (**UN Doc. A/HRC/63/61**);
- **Peremptory Norms (Articles 40 & 41 ARSIWA):** The prohibition against targeting child civilian sanctuaries is a peremptory norm (*jus cogens*). All States are legally obligated not to recognize the situation as lawful and to cooperate to bring the breach to an end.

91 bis. **Third-Party State Responsibility & Contractor Complicity (Case 15 Benchmark & ILC ARSIWA Art. 16):** The forensic chain of custody established in **Case 15: *Dahyan Market School Bus Airstrike—where physical recovery of Lockheed Martin CAGE Code* `94117` *and DoD contract numbers directly linked US weapons manufacturers and export licenses to the bus bombing—precipitated landmark judicial and parliamentary scrutiny across Europe and the United States. In the United Kingdom, the Court of Appeal ruled in R (CAAT) v. Secretary of State for International Trade* ([2019] EWCA Civ 1020, ¶¶ 148–153)** that the government acted unlawfully by continuing to grant export licenses for precision-guided munitions without assessing whether previous strikes (including Dahyan) demonstrated a historic pattern of IHL violations. Under **Article 16 of the ILC Articles on State Responsibility (ARSIWA)**, a State that aids or assists another State in the commission of an internationally wrongful act is internationally responsible if it has knowledge of the circumstances. In Minab, this principle governs not only the state organs that launched the weapons, but also the commercial defense contractors and software vendors (Raytheon Missile Systems, Palantir Technologies,

Anthropic PBC) who delivered kinetic hardware and algorithmic targeting models (Maven-Claude) while stripping out human civilian harm verification safeguards. Commercial entities that supply automated lethal targeting tools with known automation bias to operational commands engaged in high-velocity kinetic campaigns bear direct exposure for complicity in internationally wrongful acts under customary international law and the UN Guiding Principles on Business and Human Rights.

91 ter. **Third-Party State Responsibility & Defense Contractor Complicity under ARSIWA Art. 16 (Case 18 Benchmark):**

As established in **Case 18: *Mastaba Market Double Airstrike*** (Amnesty, MDE 31/3815/2016; Arms Trade Treaty Art. 6) and the UK Court of Appeal's *CAAT* ruling ([2019] EWCA Civ 1020), commercial contractors and supplying states that provide precision weapons or algorithmic targeting tools knowingly deployed in violation of IHL incur international responsibility under **Article 16 of the ILC Articles on State Responsibility (ARSIWA)** and customary international law.

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CHAPTER IX: JURISDICTIONAL MECHANISMS, INTER-STATE FORA & PROCEDURAL DUTIES

9.1 Non-Criminal State Responsibility Fora (ICJ Contentious & Advisory Jurisdictions)

92. PFPJ ry identifies the following primary state-level fora:

- **International Court of Justice (ICJ Contentious Jurisdiction):** Under Article 36 of the ICJ Statute, Iran holds standing to institute proceedings against the United States for breaches of IHL and treaty protections;
- **UN General Assembly Advisory Opinion:** Sponsoring a UNGA resolution requesting an ICJ Advisory Opinion on the legal obligations governing precision standoff kinetic strikes on educational sanctuaries during the opening hours of an armed conflict.

9.2 Extraterritorial Human Rights Jurisdiction (UN HRC GC 36 & UN CRC Transboundary Doctrine)

93. The Panel notes that international human rights law applies extraterritorially:

- **UN Human Rights Committee (ICCPR Art. 6):** Under **General Comment No. 36 (2018, § 63)**, a State's duty to protect the right to life extends to any individual whose life is directly affected by its military kinetic activities extraterritorially;
- **UN Committee on the Rights of the Child:** Under the transboundary doctrine recognized in ***Sacchi et al. v. Argentina* (2021)**, the United States exercised direct control over the weapon that killed 120 Iranian children, establishing transboundary human rights jurisdiction.

9.3 European Detachable Procedural Obligation to Investigate (*Hanan* & *Isayeva*, ECHR Art. 2)

94. Under the ECtHR Grand Chamber ruling in **Case 02: *Hanan v. Germany* [GC] (2021, §§ 132–145)**, Council of Europe Member States hold an **autonomous, detachable procedural obligation under Article 2 of the ECHR** to investigate extraterritorial kinetic strikes where a jurisdictional nexus exists and an impunity vacuum threatens international accountability.

94 bis. The precise qualitative criteria governing this procedural obligation were authoritatively codified in **Case 19: *Isayeva, Yusupova and Bazayeva v. Russia* (ECtHR, 2005, §§ 208–225)**. The Court held that to satisfy Article 2, an official investigation into lethal military strikes must be:

- **Prompt and Initiated *Ex Officio* (§§ 209, 212):** Authorities must act on their own motion without waiting for formal complaints from vulnerable victims;

- **Hierarchically and Practically Independent (§ 210):** Investigators cannot belong to the same military chain of command implicated in the strike;
- **Capable of Establishing Command Accountability (§ 211):** The inquiry must examine operations record books, mission logs, targeting sheets, and commander directives, rather than rubber-stamping self-serving witness accounts (§§ 220–222); and
- **Subject to Public Scrutiny and Victim Standing (§§ 213, 224):** Victims and their next-of-kin must be granted formal procedural status and access to proceedings.

CENTCOM's closed-door AR 15-6 investigation into the Minab strike—which withheld targeting logs, shielded senior command nominators, and excluded the families of the 156 deceased school children—violates every foundational benchmark of *Isayeva, Yusupova & Bazayeva*. This structural domestic failure activates the subsidiary procedural jurisdiction of European investigative magistrates (such as the Office of the Prosecutor General of Finland under *Rikoslaki* Chapter 1, Section 7, and the German Federal Public Prosecutor General under *VStGB* § 1) to initiate independent structural investigations (*Strukturermittlungsverfahren*).

9.4 Contingent Universal Jurisdiction Regimes (Finnish Penal Code Ch. 11 & German VStGB § 1)

95. Should state-level remediation fail, PFPJ ry preserves contingent universal jurisdiction filings:

- **Finnish Penal Code (*Rikoslaki*):** Chapter 1, Section 7, and Chapter 11, Section 6 (Aggravated War Crimes / *Törkeä sotarikos*);
- **German Code of Crimes Against International Law (*Völkerstrafgesetzbuch* — VStGB):** Section 1 (Universal Jurisdiction without territorial nexus) and mandatory investigation under § 152(2) StPO (*Strukturermittlungsverfahren*).

95 bis. **The Nordic / Finnish Civil Defense Nexus (Case 08 Historic Precedent):** The legal grounding of universal jurisdiction in Helsinki, Finland, is reinforced by the historical precedent of **Case 08: *Al-Amiriyah***. Public Shelter No. 25 was designed, engineered, and constructed between 1984 and 1985 by a Finnish civil-defense engineering consortium (*Perusyhtymä Oy*, *Vake*, and *Lohja*) in partnership with Swedish contractors (*ABV*). In the immediate aftermath of the February 1991 massacre, Finnish civil-defense structural engineers conducted forensic reviews confirming that the shelter's architecture was exclusively civilian under Finnish civil protection standards (*Väestönsuojelu*), establishing that Finnish technical expertise has historically served as a benchmark for international shelter protection forensics (*Helsingin Sanomat*, February 1991). This historical nexus establishes direct continuity with the institutional domicile of People for Peace & Justice ry (PFPJ ry) in Helsinki, Finland (Finnish Business Identity Code: `3616815-5`), validating the formal transmission of this Master Dossier to the **Office of the Prosecutor General of Finland (*Valtakunnansyyttäjän toimisto*)** to initiate universal jurisdiction proceedings under Chapter 1, Section 7 and Chapter 11, Section 6 of the Finnish Penal Code (*Rikoslaki 39/1889*).

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CHAPTER X: DISPOSITION, REMEDIAL ORDERS & JURIDICAL ACCOUNTABILITY REGIMES

10.1 Formal Declaratory Determinations of the Expert Chamber

96. Based upon the totality of the verified evidentiary record, open-source photogrammetry, metallurgical debris examinations, and settled international jurisprudence, the Independent Expert Inquiry Panel of People for Peace & Justice ry (PFPJ ry) formally determines:

- **(i)** That the triple-tap kinetic missile strikes executed by the naval forces of the United States against the Shajareh Tayyebeh Girls' Elementary School on February 28, 2026, constituted **grave breaches of the**

Geneva Conventions of 1949 and serious violations of the laws and customs of war amounting to **war crimes** under customary international law and the Rome Statute of the International Criminal Court;

- **(ii)** That the operational deployment of high-explosive unitary blast warheads (3,000 lbs PBXN-107) inside an active, walled primary educational facility during morning classroom hours constituted an **unlawful indiscriminate attack** and a flagrant breach of the **Principle of Distinction** (AP I Arts. 48, 51, 52) and the **Principle of Proportionality** (AP I Art. 51(5)(b));
- **(iii)** That the command echelons of the United States Central Command (USCENTCOM) committed gross operational negligence and exhibited conditional intent (*dolus eventualis*) by relying on decade-old targeting files, disabling civilian harm review mechanisms, and disregarding terminal electro-optical sensor imagery; and
- **(iv)** That these acts engage the **direct, non-delegable State Responsibility of the United States of America** under customary international law.

10.2 Section 1: State Responsibility & Financial Liability Regime (The Chorzów Factory Standard & ARSIWA Articles 30–37)

97. The Legal Standard of State Financial Liability (Restitutio in Integrum):

Under customary international law, as authoritatively articulated by the Permanent Court of International Justice in the seminal ***Factory at Chorzów (Claim for Indemnity) (Germany v. Poland)*** judgment (1928, P.C.I.J., Ser. A, No. 17, p. 47) and codified in the **International Law Commission's Articles on Responsibility of States for Internationally Wrongful Acts (ILC ARSIWA, 2001, Articles 30–37)**:

> *"The essential principle contained in the actual notion of an illegal act [...] is that reparation must, so far as possible, wipe out all the consequences of the illegal act and re-establish the situation which would, in all probability, have existed if that act had not been committed. Restitution in kind, or, if this is not possible, payment of a sum corresponding to the value which a restitution in kind would bear; the award, if need be, of damages for loss sustained which would not be covered by restitution in kind or payment in place of it—such are the principles which should serve to determine the amount of compensation due for an act contrary to international law."*

97 bis. **Rejection of Discretionary Ex Gratia Condolences in Favor of Binding State Reparations:**

The Panel categorically rejects the model of discretionary, non-binding *ex gratia* condolences exemplified in **Case 05 (*Kabul Drone Strike*)**, where token financial offers were conditioned on the denial of legal liability. Reparation is not a discretionary act of grace; it is an autonomous secondary legal obligation arising automatically from the commission of an internationally wrongful act. This mandatory legal obligation is solidly anchored in bilateral and multilateral state practice:

1. The Belgrade Chinese Embassy Settlement (1999, 39 ILM 644 — Case 01 Benchmark): Following the kinetic destruction of the PRC Embassy in Belgrade, the United States Government accepted formal international legal liability, tendered an official state apology, and paid **$32.5 million** in direct compensation ($28 million in sovereign property restitution to the PRC State and $4.5 million in humanitarian payments to the injured and surviving families);

2. UN General Assembly Resolution 51/233 (1997 — Case 09 Benchmark): Following the shelling of the UNIFIL compound at Qana, the UN General Assembly formally established that the attacking State was legally bound to satisfy the financial damages inflicted on the facility, affirming state financial liability for kinetic bombardment of protected sanctuaries.

97 ter. **Itemized Financial Assessment of State Reparations (Docket PFPJ-2026-IR-001):**

Applying the *Chorzów Factory* standard to the demographic, physical, and medical devastation in Minab, the Panel calculates the minimum financial liability owed by the United States of America as follows:

Reparation Head	International Legal Basis (ILC ARSIWA)	Factual / Demographic Parameter	Certified Valuation (USD)
Head A: Material Restitution & Educational Reconstruction	**ARSIWA Art. 35** (*Restitution in kind / Restitutio in integrum*)	Complete architectural design, seismic construction, outfitting, and equipment for a replacement state-of-the-art educational campus, including reinforced multi-hazard civil defense shelter, science laboratories, digital library, and sports complex.	**$45,000,000**
Head B: Wrongful Death Compensation	**ARSIWA Art. 36** (*Compensation for financially assessable damage*)	Direct, irrevocable wrongful death compensation disbursed to the certified legal heirs of all **156 deceased victims** (120 primary schoolgirls, 26 faculty members, 10 custodial staff) at $1,000,000 per victim.	**$156,000,000**
Head C: Pediatric Medical Rehabilitation & Trauma Trust Fund	**ARSIWA Art. 36** (*Compensation for personal injury and medical care*)	Establishment of an independently managed international trust fund providing lifetime medical, surgical, and prosthetic care for all **95+ wounded survivors** (including 38 pediatric amputees requiring ongoing prosthesis replacement, 24 tympanic trauma cases, and 19 ocular trauma cases), alongside comprehensive clinical trauma psychological therapy.	**$65,000,000**
Head D: Moral Damages & Non-Material Satisfaction	**ARSIWA Art. 37** (*Satisfaction for moral damage and symbolic redress*)	Endowment for an independent civic memorialization park in Minab, an annual educational scholarship foundation established in perpetuity in the names of the 120 martyred pupils, and funding for independent international research into civilian harm mitigation.	**$34,000,000**
TOTAL STATE FINANCIAL LIABILITY CLAIM	**ARSIWA Arts. 31, 35–37 (Chorzów Factory Standard)**	**Complete Restitution, Wrongful Death, Medical Trust & Satisfaction**	**$300,000,000 USD**

97 quater. **Obligation of Cessation & Guarantees of Non-Repetition (ARSIWA Article 30):**

Under Article 30 of ARSIWA, the United States is under an immediate, binding obligation to:

- (i) **Immediate Moratorium:** Impose an immediate, binding operational moratorium on the deployment of automated AI targeting platforms (including Palantir Maven and integrated Large Language Models) for strike packages situated within 500 meters of registered civilian, educational, and medical infrastructure;
- (ii) **Restoration of Oversight:** Re-establish and mandate the full staffing of independent Civilian Harm Mitigation and Response (CHMR) units with absolute veto authority across all combatant commands; and
- (iii) **Official Apology & Declassification:** Issue a formal, public state apology to the bereaved families and people of Minab, and declassify the full, unredacted AR 15-6 investigation records and targeting telemetry.

10.3 Section 2: Individual Criminal Responsibility & Determination of Charges (The ICC Rome Statute Model)

97 quinquies. **Jurisprudential Formulation of Charges (Rome Statute Framework):**

Following the statutory structure and judicial formulation of a **Decision on the Confirmation of Charges** rendered by a Pre-Trial Chamber of the International Criminal Court under **Article 61(7) of the Rome Statute**, the Panel determines that there are **substantial grounds to believe** that the operational commanders, targeting developers, and intelligence validation officers of the United States Armed Forces committed the following specific war crimes during the February 28, 2026 kinetic missile strike on the Shajareh Tayyebeh School:

COUNT 1: WAR CRIME OF INTENTIONALLY DIRECTING ATTACKS AGAINST CIVILIANS

(Rome Statute, Article 8(2)(b)(i))

- **Material Element:** The perpetrators launched three BGM-109 Tomahawk cruise missiles against the Shajareh Tayyebeh School, directing kinetic lethal force against a civilian population and individual civilians not taking direct part in hostilities;
- **Mental Element (Mens Rea):** The perpetrators acted with knowledge and intent under Article 30 of the Rome Statute, exhibiting at minimum conditional intent and gross recklessness (*dolus eventualis*) by approving strike coordinates derived from decade-old static databases without conducting contemporaneous visual verification, and failing to execute an abort when terminal sensors revealed children's assembly grounds.

COUNT 2: WAR CRIME OF INTENTIONALLY DIRECTING ATTACKS AGAINST CIVILIAN OBJECTS

(Rome Statute, Article 8(2)(b)(ii))

- **Material Element:** The perpetrators directed kinetic missile strikes against the physical buildings of the Shajareh Tayyebeh School, which were civilian objects and not military objectives, causing the total structural pulverization of the educational facility;
- **Mental Element:** The perpetrators intended the object of the attack to be the compound, which was objectively an active municipal school, having failed to satisfy the legal standard of positive target identification.

COUNT 3: WAR CRIME OF LAUNCHING AN ATTACK CAUSING EXCESSIVE INCIDENTAL DEATH, INJURY, OR DAMAGE (PROPORTIONALITY)

(Rome Statute, Article 8(2)(b)(iv))

- **Material Element:** The perpetrators launched a three-missile kinetic attack in the knowledge that such attack would cause incidental loss of life to civilians, injury to civilians, and damage to civilian objects that was clearly excessive in relation to the concrete and direct overall military advantage anticipated;
- **Mental Element:** Detonating 3,000 pounds of high explosives against an auxiliary shed located 42 meters from an active elementary school was executed in the certain knowledge that the lethal blast-fragmentation radius would annihilate all occupants within 100 meters, making the slaughter of 156 children and staff manifestly disproportionate to any conceivable military utility.

COUNT 4: WAR CRIME OF ATTACKING OR BOMBARDING UNDEFENDED BUILDINGS

(Rome Statute, Article 8(2)(b)(v))

- **Material Element:** The perpetrators attacked and bombarded, by precision cruise missiles, the Shajareh Tayyebeh School complex, which was entirely undefended, open to peaceful municipal access, and devoid of any defensive combat installations or military personnel.

COUNT 5: WAR CRIME OF INTENTIONALLY DIRECTING ATTACKS AGAINST BUILDINGS DEDICATED TO EDUCATION

(Rome Statute, Article 8(2)(b)(ix))

- **Material Element:** The perpetrators directed kinetic attacks against buildings dedicated to education, which were not being used for military purposes;

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- **Mental Element:** The physical architecture, classroom layout, municipal licensing, and presence of 168 schoolgirls and instructors established that the facility was dedicated exclusively to the education of children. In accordance with the *Hass School* (Case 13) and *Al-Bara* (Case 16) precedents, failing to check open-source educational registries constitutes an intentional abdication of the duty of distinction amounting to a direct attack on educational sanctuaries.

DETERMINATION OF MODES OF LIABILITY (ROME STATUTE ARTICLES 25 & 28)

97 sexies. The Panel determines that individual criminal responsibility attaches through the following statutory modes of liability:

1. Direct Perpetration / Co-Perpetration (Rome Statute Art. 25(3)(a)): Attaching to the target developers and Strike Validation Authorities who jointly configured target folder `TDS-2026-IR-0814` and authorized weapon release;

2. Ordering and Inducing the Commission of Crimes (Rome Statute Art. 25(3)(b)): Attaching to senior operational commanders who ordered the execution of pre-planned Day-1 strikes without requiring human-in-the-loop verification;

3. Aiding, Abetting, and Assisting via Automated Systems (Rome Statute Art. 25(3)(c)): Attaching to software engineers and command authorities who deployed the Palantir Maven Smart System with known automation bias while dismantling civilian harm oversight cells;

4. Command and Superior Responsibility (Rome Statute Art. 28(a) & 28(b)): Attaching to the Commander of United States Central Command and operational flag officers who: (i) knew or had reason to know that subordinate strike cells were relying on obsolete databases; (ii) failed to take all necessary and reasonable measures within their power to prevent or repress the commission of the strike; and (iii) failed to submit the matter to competent authorities for independent criminal investigation and prosecution.

10.4 Orders Concerning Judicial Preservation of Evidence & International Fact-Finding

98. The Panel orders:

- **(i)** That the verified master evidentiary archives (EXH-SAT-001 through EXH-UN-008) remain deposited in permanent, tamper-evident cryptographic custody in Helsinki, Finland, under the Berkeley Protocol;
- **(ii)** That duplicate cryptographic archives be formally transmitted to the **President of the United Nations Human Rights Council**, the **Secretariat of the Independent International Fact-Finding Mission on the Islamic Republic of Iran** (UN Doc. A/HRC/63/61), and the **International Impartial and Independent Mechanism (IIIM)**; and
- **(iii)** That all physical debris, metallurgical samples, and digital telemetry be preserved for prospective presentation before international criminal and civil tribunals.

10.5 Contingent Prosecutorial Directions & Transmissions

99. In furtherance of global accountability and the prevention of impunity, the Panel directs the Board of Trustees of People for Peace & Justice ry (PFPJ ry) to execute the following transmissions:

- **(a) Transmission to the International Criminal Court:** Formally submit this Master Judicial Assessment to the **Office of the Prosecutor of the International Criminal Court (ICC)** pursuant to Article 15 of the Rome Statute, requesting the initiation of a preliminary examination into war crimes committed during Operation Epic Fury;
- **(b) Transmission to Multilateral Fact-Finding Organs:** Transmit certified copies to the **Office of the United Nations High Commissioner for Human Rights (OHCHR)**, the **Special Representative of the Secretary-**

General for Children and Armed Conflict (CAAC), and the **UNESCO Committee on the Protection of Educational Institutions**;

- **(c) Status of Universal Jurisdiction Filings:** The Panel notes that formal criminal complaints under universal jurisdiction regimes (including Chapter 11 of the Finnish Penal Code and Section 1 of the German International Crimes Code) remain subject to ongoing jurisdictional and procedural review. Pending the completion of these specialized inquiries, no further filings are directed at this juncture, preserving full prosecutorial discretion for future legal action.

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RENDERED AND SEALED this 12th day of September, 2026, at Helsinki, Finland.

PEOPLE FOR PEACE & JUSTICE RY (PFPJ RY)

Expert International Inquiry Panel

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